Scenario 1: The Genesis

Facts

Assume the following facts can be proven beyond a reasonable doubt.

1. Arthur and Brenda explicitly agree to operate an illicit pharmaceutical lab (a state felony) in a residential high-rise, splitting profits 60/40. Arthur orders Brenda: 'No flammable agents—keep it low profile.' Arthur never visits the site but holds the only other key to the unit.
2. Brenda rents Unit 4B and purchases drums of 'Solv-X' from David, fully aware it is a highly volatile and flammable chemical cutting agent.
3. David knows Brenda is running an illicit lab. To help her evade law enforcement, he deliberately mislabels the drums as 'Water Purifier' and charges her a 50% premium for this service.
4. State Statute 101 makes storing hazardous industrial chemicals in a residential unit a misdemeanor punishable by a $500 fine. The statute is entirely silent on mental state.
5. Concerned about inspections, Brenda formally requested a zoning variance. She receives an official written letter from the City Zoning Commissioner erroneously stating Unit 4B is permanently exempt from the residential storage statute.
6. Brenda hires Charles as a night worker. Charles has a documented history of severe parasomnia. Before his shift, Charles voluntarily consumes a prescription sleep-aid known to trigger complex sleepwalking.
7. While completely unconscious and asleep, Charles sleepwalks and knocks over a mislabeled drum of Solv-X.
8. The spilled Solv-X is instantly ignited by a sparking electric space heater Brenda had placed directly adjacent to the chemical storage area, causing a massive fire.
9. a cheap electric space heater she knew had a sparking, faulty wire.
10. The fire rapidly spreads through the ventilation system. Tenant Victor, sleeping in Unit 4C, dies from smoke inhalation.
11. The State charges Arthur with the homicide of Tenant Victor under Pinkerton liability, relying on his conspiracy with Brenda.
12. The State charges Brenda with felony murder, using the underlying operation of the illicit lab (a state felony) as the predicate felony.

Characters (Instructor Only)

- **Arthur** (Syndicate CEO): Pinkerton liability, constructive possession, and risking-catastrophe conduct crimes.
- **Brenda** (Logistics Manager): Mistake of law, intervening cause, felony murder, and homicide grading.
- **Charles** (Night Worker): Voluntary act requirement, automatism (parasomnia), and time-framing.
- **David** (Chemical Supplier): Accomplice liability mens rea (purpose vs. knowledge).
- **Tenant Victor** (Victim): Proximate causation and the homicide victim unit of prosecution.

Q1. State Statute 101 punishes the residential storage of hazardous chemicals with a $500 fine and is silent on mental state. Under the Morissette framework, does the State need to prove that Brenda possessed a culpable mental state regarding this storage offense?

a. Yes, because the Morissette presumption requires reading in a recklessness standard whenever a criminal statute is entirely silent on mental state.

b. Yes, because hazardous chemical storage is an inherently wrongful act (malum in se), triggering the common law requirement for proof of mens rea.

c. No, because the statute targets hazardous items with capacity for widespread harm and carries only a minor penalty, marking it as a public welfare offense.

d. No, because the MPC "one for all" rule dictates that silence on mental state in any element implies strict liability for the entire statutory offense.

e. Yes, because the imposition of strict liability is constitutionally barred unless the legislature has explicitly authorized it in the precise text of the statute.

Answer: (c)

Explanation: (c) is correct. Under the Morissette framework, the presumption that criminal statutes require mens rea is displaced for "public welfare offenses." These offenses regulate dangerous items (hazardous industrial chemicals), involve defendants in a position to prevent harm, and carry minor penalties ($500 fine).

a. is wrong because while the Morissette presumption generally reads mens rea into silent statutes, the public welfare exception applies to this specific type of regulatory offense.

b. is wrong because chemical storage is a regulatory offense (malum prohibitum), not inherently wrongful like theft or assault.

c. is wrong because the MPC defaults to recklessness, not strict liability, when a statute is silent (MPC 2.02(3)).

d. is wrong because strict liability can be inferred from statutory silence under the public welfare exception; explicit authorization is not constitutionally required.

Q2. Assume for this question that Statute 101 requires proof that Brenda "knowingly" violated the residential storage law. Can Brenda successfully assert a mistake of law defense?

a. Yes, because her mistake regarding the zoning variance negated the factual elements required to establish that she operated a pharmaceutical lab.

b. Yes, because she reasonably relied on a formal written statement from the City Zoning Commissioner, an official charged with interpreting such laws.

c. No, because ignorance of the law is never an excuse, and a zoning commissioner's error cannot immunize a defendant from a criminal prosecution.

d. No, because her reliance was on advice concerning a collateral property law issue rather than an interpretation of the specific penal statute itself.

e. No, because the statute requires knowledge of the violation, meaning she must only know the factual nature of her conduct, not its legal status.

Answer: (b)

Explanation: (b) is correct. The common law and MPC 2.04(3) recognize a narrow exception to the "ignorance of law is no excuse" rule when a defendant genuinely and reasonably relies on an official statement of the law from a public officer or body charged with its interpretation.

a. is wrong because this is a mistake of law, not a mistake of fact.

b. is wrong because the traditional rule has an established exception for reasonable reliance on official statements.

c. is wrong because a zoning commissioner's formal determination that a unit is exempt directly addresses the legal applicability of the storage regulation.

d. is wrong because if a statute explicitly requires one to "knowingly" violate the law, culpability as to illegality is required, making the mistake defense highly relevant.

Q3. Charles asserts that he cannot be convicted of any crime regarding the chemical spill because he was sleepwalking and completely unconscious at the time. Assuming his parasomnia is medically verified, will his defense succeed?

a. Yes, because a bodily movement that occurs while a defendant is asleep or unconscious is categorically excluded from the definition of a voluntary act.

b. Yes, because his parasomnia is a documented medical condition that eliminates his capacity to form any culpable mental state during an episode.

c. No, because the sleepwalking exception to the voluntary act requirement applies only when the defendant's unconsciousness is completely unprovoked.

d. No, because his prior voluntary choice to consume a medication known to trigger complex sleepwalking satisfies the voluntary act requirement via time-framing.

e. No, because sleepwalking is considered an affirmative excuse defense that only mitigates punishment rather than negating the actus reus entirely.

Answer: (d)

Explanation: (d) is correct. Under the time-framing doctrine, when a defendant makes a voluntary choice that foreseeably creates the risk of later involuntary harmful conduct—such as taking a drug known to trigger parasomnia—courts trace liability back to that prior voluntary act.

a. is wrong because while movements during sleep are generally involuntary, the time-framing doctrine bridges this gap by looking to earlier voluntary conduct.

b. is wrong because the issue is the voluntary act requirement (actus reus), not merely mens rea; furthermore, the prior consumption defeats the defense.

c. is wrong because there is no specific "unprovoked" requirement; the issue is whether the state was self-induced through a prior voluntary act.

d. is wrong because genuine unconsciousness or sleepwalking is a complete defense that negates the actus reus, not merely a mitigating affirmative defense.

Q4. Assume Brenda is charged with causing the massive fire. She argues that Charles knocking over the drum was an independent intervening cause that severed her causal chain. How should a court rule?

a. The causal chain is severed, because Charles's act of knocking over the drum was a fully independent force that arose from an unrelated source.

b. The causal chain is severed, because a third party's physical action automatically supersedes a prior defendant's non-violent regulatory failure.

c. The causal chain is intact, because the "sufficiently direct cause" test ignores all intervening events so long as the defendant satisfied but-for causation.

d. The causal chain is intact, because placing a sparking heater next to mislabeled volatile chemicals made the resulting fire reasonably foreseeable.

e. The causal chain is severed, because Brenda could not have specifically anticipated that a sleepwalking employee would knock over that exact drum.

Answer: (d)

Explanation: (d) is correct. Under proximate cause principles, a defendant is legally responsible if the ultimate harm was a reasonably foreseeable consequence of her conduct. Placing a sparking heater directly next to volatile chemicals makes ignition highly foreseeable, meaning the intervening act does not sever liability.

a. is wrong because while Charles's act was independent, it does not sever the chain if the resulting harm was reasonably foreseeable.

b. is wrong because third-party actions do not automatically break the causal chain; they must be unforeseeable superseding causes.

c. is wrong because legal causation does not ignore intervening events; it evaluates whether they sever the chain.

d. is wrong because foreseeability does not require the defendant to anticipate the exact, specific mechanism of harm.

Q5. Assume the jurisdiction has adopted a risking-catastrophe statute identical to the MPC and Pennsylvania models. Arthur argues he cannot be convicted of this offense because he ordered Brenda to use "no flammable agents." Will Arthur's argument succeed?

a. Yes, because risking-catastrophe is a result crime that demands tracing a direct but-for causal chain from Arthur's instructions to the actual ignition of the fire.

b. Yes, because Arthur's explicit instruction to avoid flammable agents completely negates the mental state of recklessness required to establish liability for the offense.

c. No, because risking-catastrophe is a conduct crime that eliminates the causation requirement, focusing instead on whether the overall enterprise recklessly created a risk.

d. No, because under catastrophe statutes, any participant in a conspiracy is strictly liable for any resulting widespread harm, regardless of their individual mental state.

e. Yes, because catastrophe statutes impose an affirmative duty to prevent harm, which Arthur satisfied by instructing Brenda not to use flammable materials.

Answer: (c)

Explanation: (c) is correct. Risking-catastrophe statutes (like MPC 220.2 or PA 3302) are conduct crimes, meaning they eliminate the need to prove the defendant caused the actual harm. Instead, liability is based on the reckless creation of a catastrophic risk, which is satisfied by establishing an illicit lab in a high-rise.

a. is wrong because risking catastrophe is a conduct crime, not a result crime.

b. is wrong because while Arthur gave a safety instruction, organizing a clandestine lab in a residential high-rise still constitutes a conscious disregard of catastrophic risk.

c. is wrong because these statutes require recklessness as to the risk, not strict liability.

d. is wrong because a verbal instruction does not negate his active participation in creating the dangerous condition in the first place.

Q6. David is charged as an accomplice to Brenda's operation of the illicit lab. He argues he merely sold her chemicals and knew about the lab, but did not have the specific purpose to facilitate it. Will David be convicted?

a. Yes, because the ordinary commercial sale of goods to a known criminal automatically establishes the requisite purpose for accomplice liability.

b. Yes, because his deliberate mislabeling of the chemicals and charging a 50% premium demonstrate that he had the purpose to facilitate the illegal enterprise.

c. No, because an accomplice must actually participate in the core criminal act, and David's involvement ended once the chemicals were delivered.

d. No, because David did not share in the profits of the lab itself, which is a strict prerequisite for establishing accomplice purpose.

e. Yes, because under modern statutes, mere knowledge of the principal's criminal intent is always sufficient to establish accomplice liability for suppliers.

Answer: (b)

Explanation: (b) is correct. While mere knowledge that a buyer will use goods illegally is generally insufficient for accomplice liability, a supplier who charges a premium or offers special services (like deliberate mislabeling) to aid the illegal purpose crosses the line from mere knowledge to shared purpose.

a. is wrong because an ordinary commercial sale of non-restricted goods with mere knowledge of illegal use does not establish purpose.

b. is wrong because providing material assistance prior to the offense is a classic form of accomplice liability; actual participation in the core act is not required.

c. is wrong because a supplier can have the purpose to facilitate the crime by securing a premium, even without a direct stake in the ultimate criminal profits.

d. is wrong because the prevailing standard for accomplice liability requires the purpose to promote or facilitate the offense, not mere knowledge.

Q7. Arthur is charged with possession of the illicit lab materials. He argues that because he never visited Unit 4B, he cannot be held liable for possessing the items inside. How should a court rule on this defense?

a. He is guilty, because his status as a leading co-conspirator automatically establishes physical possession of all contraband held by the criminal enterprise.

b. He is guilty, because holding a key to the unit combined with his agreement to run the lab establishes his power and intent to exercise control over the contents.

c. He is not guilty, because the voluntary act requirement strictly demands physical handling or immediate presence at the scene for a possession conviction.

d. He is not guilty, because he explicitly ordered Brenda to avoid flammable agents, thereby terminating his control over the specific items she brought in.

e. He is guilty, but only because the legal title to the illicit rental unit is effectively split between them in their 60/40 profit sharing agreement.

Answer: (b)

Explanation: (b) is correct. Possession need not be actual physical possession; constructive possession is established when a defendant has the power and intent to exercise dominion and control over the contraband. Holding the only other key and co-organizing the enterprise establishes this control.

a. is wrong because conspiracy liability (Pinkerton) is a separate doctrine; co-conspirator status does not automatically establish the distinct actus reus of possession.

b. is wrong because the law universally recognizes constructive possession, which explicitly does not require physical handling or immediate presence.

c. is wrong because his order regarding specific types of chemicals does not negate his overarching power and intent to control the lab space and its materials.

d. is wrong because constructive possession is based on actual control and intent, not formal legal title or profit-sharing percentages.

Q8. The State charges Arthur with Victor's homicide under Pinkerton liability. Arthur argues the death was not in furtherance of the conspiracy because he specifically ordered 'No flammable agents.' Will Arthur be convicted?

a. Yes, because a fire is a reasonably foreseeable consequence of operating a clandestine chemical lab, making Arthur liable for the substantive offenses of his co-conspirator.

b. Yes, because Pinkerton imposes strict liability on all syndicate leaders for any death that occurs anywhere within the same building as their operation.

c. No, because Arthur's explicit command to avoid flammables constituted a valid legal withdrawal from the conspiracy prior to the fatal fire.

d. No, because Pinkerton liability only extends to property crimes and regulatory offenses, not to unintended homicides committed by co-conspirators.

e. Yes, because Arthur's failure to physically inspect the unit constituted an affirmative omission that independently caused Victor's death.

Answer: (a)

Explanation: (a) is correct. Under the Pinkerton doctrine, a conspirator is liable for the substantive offenses committed by a co-conspirator if those offenses are in furtherance of the conspiracy and are a reasonably foreseeable consequence of the unlawful agreement. A chemical fire is highly foreseeable in a clandestine lab, regardless of Arthur's specific safety orders.

b. is wrong because Pinkerton requires foreseeability and furtherance; it is not absolute strict liability based merely on geographic proximity.

c. is wrong because legal withdrawal requires an affirmative act to thwart the conspiracy or clearly communicate withdrawal to co-conspirators, not merely giving a restrictive order.

d. is wrong because Pinkerton liability regularly extends to foreseeable violent crimes and homicides committed during the conspiracy.

e. is wrong because Arthur's liability under Pinkerton is vicarious based on his co-conspirator's acts, not an omission theory regarding his own failure to inspect.

Q9. The State charges Brenda with felony murder based on the death of Tenant Victor, using her operation of the illicit lab as the predicate felony. Assume the jurisdiction limits the felony murder rule to 'inherently dangerous' felonies. Under which approach to inherent danger would her defense most likely succeed?

a. An approach that assesses inherent danger based on the specific facts of the case, because she instructed Charles to be careful during his shift.

b. An approach that assesses inherent danger "in the abstract," if the court concludes that a pharmaceutical lab can theoretically be operated safely.

c. An approach that applies the merger doctrine, because the operation of the lab was not independent of the fire that caused the homicide.

d. An approach that requires the predicate felony to be malum in se, because regulatory violations can never trigger felony murder liability.

e. An approach that requires agency liability, because the fatal act was committed by Charles, who was acting outside the scope of his employment.

Answer: (b)

Explanation: (b) is correct. In jurisdictions that assess inherent danger "in the abstract," courts look only at the statutory elements of the felony, ignoring the specific facts. If the felony (operating a pharmaceutical lab) can theoretically be committed without a high probability of death, it cannot serve as a predicate for felony murder.

a. is wrong because under a factual approach, Brenda's specific conduct—storing volatile chemicals next to a sparking heater—was manifestly dangerous and would qualify.

b. is wrong because the merger doctrine applies to assaultive crimes that are integral to the homicide, whereas operating a lab has an independent felonious purpose.

c. is wrong because operating an illicit pharmaceutical lab is a recognized felony that can trigger the rule; it is not merely a strict liability violation.

d. is wrong because under the agency approach, the felony murder rule still applies as long as the fatal act is committed by an agent acting in furtherance of the crime.

Q10. Assume that the felony murder rule does not apply. The State proceeds against Brenda on alternative homicide theories for Victor's death. Based on her conduct with the chemicals and the heater, which grading is most appropriate?

a. First-degree premeditated murder, because placing the heater next to the chemicals demonstrates a calculated and deliberate plan to kill any surrounding tenants.

b. Depraved heart murder, because placing a known sparking heater directly next to highly volatile chemicals demonstrates a conscious disregard for human life.

c. Voluntary manslaughter, because the sudden ignition of the chemicals provoked a state of passion that precluded her from forming malicious intent.

d. Involuntary manslaughter based on criminal negligence, because her failure to maintain the heater was merely a breach of an ordinary standard of care.

e. No criminal homicide liability, because she was not physically present when Charles knocked over the drum and the fatal fire began.

Answer: (b)

Explanation: (b) is correct. Brenda knew the "Solv-X" was highly volatile and flammable, yet she placed a space heater that she knew had a sparking, faulty wire directly adjacent to the chemicals. This conduct goes beyond mere negligence and demonstrates a conscious disregard of a substantial and unjustifiable risk to human life, satisfying the mens rea for depraved heart (extreme recklessness) murder.

a. is wrong because there are no facts indicating Brenda formed a specific intent or premeditated plan to kill Victor or anyone else.

b. is wrong because voluntary manslaughter requires adequate provocation (heat of passion), which does not apply to accidental fires.

c. is wrong because her conduct involves actual awareness of the risk (the faulty wire and volatile chemicals), elevating her culpability from negligence to recklessness.

d. is wrong because physical presence at the moment of death is not required for homicide liability when a defendant's prior reckless acts proximately caused the result.

Scenario 2: The Blowback

Facts

Assume the following facts can be proven beyond a reasonable doubt.

1. Nora provided $100,000 in cash to Oscar and Penelope at a diner, stating: 'I will fund this methamphetamine startup, but I don't want to know how you source the chemicals or move the product. Just pay me 40% of the profits every Friday.'
2. Oscar used the funds to rent a warehouse for chemical processing, while Penelope assumed responsibility for sourcing equipment and logistics.
3. To acquire necessary processing equipment, Penelope planned to steal from a regional supply depot. She hired Quinn to drive a getaway vehicle, expressly telling him, 'We are just sneaking in to grab boxes from the loading dock. No weapons, no violence. Keep the engine running.'
4. Penelope successfully loaded several commercial centrifuges and boxes of pseudoephedrine from the depot's loading dock into Quinn's trunk.
5. As Penelope carried the last box, a depot security guard spotted her and yelled for her to freeze. Penelope abandoned the box, sprinted to Quinn's car, jumped in the passenger seat, and screamed, 'Drive! Go, go, go!'
6. Fleeing the scene, Quinn drove 85 mph through a residential 25 mph zone, ran a red light, and struck Wendy, a pedestrian in the crosswalk, killing her instantly.
7. Meanwhile, Oscar managed the chemical processing at the rented warehouse. To cut operational costs, Oscar directed his crew to dump 500 gallons of highly volatile, flammable industrial solvent directly into a residential storm drain.
8. Oscar knew the solvent emitted noxious, flammable fumes, but he subjectively believed the evening rain would dilute the chemicals before they posed a threat. He did not consult city sewer maps, which would have revealed the drain emptied into a concentrated, enclosed sewer main.
9. Two hours later, a spark from a flickering streetlamp ignited the concentrated fumes in the enclosed sewer. The massive explosion killed Victor, a city maintenance worker inspecting a nearby grate.
10. The next day, police raided a stash house leased solely in Oscar's name. Oscar was not present, but investigators found ledgers detailing the chemical processing in his handwriting. In the living room, 20 kilograms of packaged methamphetamine sat on a coffee table. Penelope was asleep in the adjacent bedroom; her wallet, phone, and a ring of keys to the stash house were resting directly on the coffee table next to the methamphetamine.
11. Paranoia swept the syndicate following the raid. Suspecting a rat, Nora invited Rachel—a mid-level associate—onto her private boat under the guise of discussing legal defense strategies.

12. While on the water, Nora confronted Rachel about the raid. Rachel laughed and said, 'I've been wearing a wire for six months. The Feds have everything. You are going to die in a federal cage, you pathetic, washed-up hack.'
13. Nora's hands began to tremble and her face flushed dark red. Screaming 'No one crosses me!', Nora instantly drew her pistol and shot Rachel in the chest, killing her.

Characters (Instructor Only)

- **Nora** (Syndicate Funder / Capo): conspiracy-agreement, accomplice-purpose-vs-knowledge, words-alone-girouard, eed-standard-elements
- **Oscar** (Syndicate Associate / Chemist): conspiracy-agreement, pinkerton-liability, extreme-indifference-standard, constructive-recklessness-welansky, constructive-possession
- **Penelope** (Syndicate Logistics): conspiracy-agreement, inherently-dangerous-felony-limitation, sb-1437-major-participant, constructive-possession
- **Quinn** (Getaway Driver): misdemeanor-manslaughter-rule
- **Rachel** (Syndicate Associate / Federal Informant (Victim)): None
- **Wendy** (Pedestrian (Victim)): None
- **Victor** (City Maintenance Worker (Victim)): None

Q11. Are Nora, Oscar, and Penelope guilty of conspiracy to manufacture and distribute methamphetamine?

a. Yes, because Nora's demand for a 40% share of the profits establishes her stake in the venture, satisfying the purpose requirement even if she deliberately avoided knowing the operational details.

b. No, because a conspiracy requires all parties to agree on the specific means and methods of the underlying offense, which Nora explicitly refused to do.

c. No, because an agreement to provide funding and receive a return on investment creates a mere commercial relationship rather than the shared criminal purpose required for conspiracy.

d. No, because Nora explicitly stated she did not want to know how the chemicals were sourced or moved, negating the required meeting of the minds for a bilateral agreement.

e. Yes, because Oscar and Penelope took substantial steps toward manufacturing, which automatically imputes an agreement to any financial backer regardless of the backer's actual intent.

Answer: (a)

Explanation: (a) is correct because under the standard for conspiracy, having a financial stake in the venture (such as a 40% cut of the profits) establishes the specific purpose to promote the illegal agreement, even if the funder deliberately avoids operational details. (e) is wrong because substantial steps by others do not automatically impute the agreement to a backer without proof of intent. (d) is wrong because avoiding logistical knowledge does not negate the core agreement to fund and profit from the enterprise. (c) is wrong because a return on investment tied directly to the illegal proceeds demonstrates a shared criminal purpose, not a mere commercial relationship. (b) is wrong because co-conspirators do not need to agree on every specific means or method to form a valid conspiracy.

Q12. Assume for this question that Penelope is guilty of the supply depot theft. Is Nora guilty of the theft as an accomplice?

a. Yes, because Nora possessed general knowledge that the syndicate would need to source chemicals and equipment, making any related crimes natural and probable consequences.

b. No, because accomplice liability applies only to those who are physically present at the scene or who provide instrumentalities directly used in the commission of the crime.

c. No, because Nora's financial contribution was completed before the theft occurred, meaning she could not have contemporaneously assisted or encouraged Penelope's actions.

d. No, because accomplice liability requires the specific purpose to facilitate the target offense, and Nora explicitly distanced herself from how the syndicate would source its equipment.

e. Yes, because providing the initial $100,000 funding was a "but-for" cause of Penelope's ability to rent a getaway vehicle and target the regional supply depot.

Answer: (d)

Explanation: (d) is correct because accomplice liability generally requires the specific purpose to promote or facilitate the target offense. Nora expressly distanced herself from the sourcing operations, indicating she lacked the purpose to facilitate the specific crime of theft, even though she funded the broader conspiracy. (e) is wrong because "but-for" factual causation is not the mens rea standard for accomplice liability. (a) is wrong because general knowledge that equipment must be sourced is insufficient; purpose is required. (c) is wrong because providing prior funding can constitute sufficient assistance if done with the requisite purpose. (b) is wrong because physical presence and the direct provision of instrumentalities are not strictly required for accomplice liability.

Q13. Assume Oscar was entirely focused on the warehouse and did not know about Penelope's plan to steal from the depot. Under the *Pinkerton* doctrine, is Oscar liable for Penelope's theft?

a. No, because Oscar lacked the specific intent to deprive the supply depot of its equipment, which is a required element for the substantive target offense of theft.

b. No, because Oscar did not provide any assistance, encouragement, or funding specifically directed toward the supply depot theft, thereby negating the accomplice actus reus.

c. No, because the *Pinkerton* doctrine only extends liability to inherently dangerous felonies, and stealing commercial equipment does not pose a direct threat to human life.

d. Yes, because any member of a conspiracy is strictly liable for all criminal offenses committed by any co-conspirator, regardless of whether the offenses advance the conspiratorial goals.

e. Yes, because the theft of processing equipment was a reasonably foreseeable consequence of the methamphetamine-manufacturing conspiracy and was committed in furtherance of it.

Answer: (e)

Explanation: (e) is correct because under the *Pinkerton* doctrine, a conspirator is liable for the substantive offenses committed by co-conspirators if those crimes are reasonably foreseeable and committed in furtherance of the conspiracy. Stealing processing equipment is a highly foreseeable means of advancing a methamphetamine-manufacturing scheme. (d) is wrong because *Pinkerton* liability is not absolute; it requires the substantive crime to be foreseeable and in furtherance of the shared goal. (b) is wrong because *Pinkerton* operates independently of traditional accomplice liability and does not require specific assistance for the target offense. (a) is wrong because the doctrine imputes the co-conspirator's specific intent to the defendant. (c) is wrong because *Pinkerton* applies to any foreseeable substantive offense, not just inherently dangerous felonies.

Q14. Assume the jurisdiction applies California's abstract elements test for the inherently dangerous felony limitation. Can Penelope's grand theft serve as a predicate for felony murder?

a. No, because the merger doctrine prevents grand theft from serving as a predicate since the taking of the equipment lacks an independent felonious purpose from the homicide itself.

b. No, because grand theft can be committed in ways that do not pose a direct danger to human life, meaning it is not inherently dangerous when examining its statutory elements.

c. No, because the theft of the equipment was complete the moment Penelope placed the boxes in the trunk, severing the causal chain before the fatal traffic collision occurred.

d. Yes, because grand theft of commercial equipment over a certain statutory value is universally recognized as a malum in se offense that automatically qualifies as a predicate.

e. Yes, because the theft was committed by fleeing at high speeds through a residential neighborhood, making it concretely dangerous under the specific circumstances of its commission.

Answer: (b)

Explanation: (b) is correct because California's abstract elements test evaluates whether the felony, by its statutory definition, can possibly be committed without endangering human life. Because grand theft can be committed non-violently (e.g., embezzlement), it is not inherently dangerous in the abstract. (e) is wrong because examining the specific circumstances (high-speed flight) is the "facts-as-committed" test, which California rejects. (d) is wrong because grand theft is not universally recognized as an enumerated predicate and often fails the dangerousness limitation. (a) is wrong because theft has an independent felonious purpose (taking property) and does not merge with the homicide. (c) is wrong because flight from the scene is considered part of the continuous transaction (res gestae) of the felony.

Q15. Assume the jurisdiction has adopted California's SB 1437 standard. Is Penelope guilty of felony murder for Wendy's death?

a. Yes, because she directly caused the death by instructing Quinn to flee, establishing the actual malice necessary for first-degree murder regardless of the underlying predicate felony.

b. No, because the actual killer was Quinn, and SB 1437 strictly limits felony murder liability to the individual whose physical actions directly cause the victim's fatal injuries.

c. No, because she expressly instructed Quinn before the crime that there would be "no weapons, no violence," completely negating any inference of subjective intent to kill.

d. Yes, because she participated in the underlying crime and her instruction to "Drive! Go, go, go!" demonstrates reckless indifference to human life during the high-speed flight.

e. No, because the California SB 1437 reform categorically requires an accomplice to have a specific intent to kill whenever the victim is an innocent bystander rather than a police officer.

Answer: (d)

Explanation: (d) is correct because under SB 1437, an accomplice who does not kill can be liable for felony murder if they were a "major participant" who acted with "reckless indifference to human life." Penelope's presence, sourcing of equipment, and explicit instruction to flee recklessly in a residential zone satisfy both elements. (a) is wrong because Penelope

did not act with actual malice or personally kill the victim. (c) is wrong because her initial instruction to avoid violence is overridden by her subsequent command to drive recklessly, which demonstrates the requisite indifference. (b) is wrong because SB 1437 explicitly retains liability for non-killers who meet the major participant and reckless indifference standards. (e) is wrong because SB 1437 does not categorically require a specific intent to kill when a bystander dies; reckless indifference suffices.

Q16. Assume the jurisdiction applies the traditional misdemeanor manslaughter rule with a proximate cause limitation. Is Quinn guilty of involuntary manslaughter for Wendy's death?

a. Yes, because speeding in a residential zone is an unlawful act that proximately caused Wendy's death, thereby substituting for the mental state typically required for manslaughter.

b. No, because traffic infractions are malum prohibitum offenses that can never serve as predicates for misdemeanor manslaughter without independent proof of actual malice.

c. No, because the proximate cause of the death was Wendy stepping into the crosswalk while Quinn was fleeing, which constitutes an independent superseding intervening act.

d. No, because the traditional misdemeanor manslaughter rule requires the underlying offense to be a violent felony, not merely a regulatory violation of the local traffic code.

e. Yes, because Quinn's subjective awareness that he was driving 85 mph in a 25 mph zone establishes the extreme indifference to human life required for depraved heart murder.

Answer: (a)

Explanation: (a) is correct because the traditional misdemeanor manslaughter rule allows a conviction when an unlawful act (like a traffic misdemeanor) proximately causes death. Speeding and running a red light are unlawful acts directly connected to the fatal collision. (e) is wrong because Quinn's conduct is being evaluated for involuntary manslaughter under the constructive rule, not depraved heart murder. (b) is wrong because malum prohibitum traffic offenses can serve as predicates if the unlawful aspect itself directly causes the danger and resulting death. (c) is wrong because a pedestrian using a crosswalk is a highly foreseeable event, not an independent superseding cause that severs liability. (d) is wrong because the rule specifically applies to non-felony offenses, not violent felonies.

Q17. Assume Oscar is charged with depraved heart murder for Victor's death. Under the Model Penal Code standard, does his conduct demonstrate extreme indifference to human life?

a. Yes, if the jury determines that his conscious disregard of the explosion risk, despite his belief about the rain, was so egregious that it manifested extreme indifference to human life.

b. No, because his subjective belief that the rain would dilute the chemicals conclusively negates the conscious awareness of risk required to establish any level of criminal recklessness.

c. No, because depraved heart murder requires proof that the defendant specifically intended to cause grievous bodily harm, and Oscar's goal was simply to cut operational costs.

d. Yes, because dumping 500 gallons of volatile chemicals into a public drain is an objectively dangerous act that automatically satisfies the implied malice standard as a matter of law.

e. No, because the actual ignition source was a flickering streetlamp two hours later, which serves as a superseding cause that severs the chain of proximate causation for the homicide.

Answer: (a)

Explanation: (a) is correct because the Model Penal Code delegates the determination of whether recklessness manifests "extreme indifference to the value of human life" directly to the jury. The jury must weigh Oscar's conscious disregard of the explosion risk against his belief about the rain. (d) is wrong because the MPC specifically avoids declaring any conduct automatically sufficient as a matter of law, leaving the moral evaluation to the factfinder. (b) is wrong because an unreasonable belief that the rain would dilute the chemicals does not automatically negate conscious awareness of the underlying risk. (e) is wrong because ignition by a streetlamp is a highly foreseeable consequence of flammable fumes, not a superseding cause. (c) is wrong because depraved heart murder requires extreme recklessness, not specific intent to cause harm.

Q18. Assume the jurisdiction follows the constructive recklessness standard from *Commonwealth v. Welansky*. How does Oscar's belief that the rain would dilute the chemicals affect his liability?

a. It is legally irrelevant to manslaughter liability, because *Welansky* holds that an intentional act resulting in death automatically qualifies as involuntary manslaughter.

b. It fully insulates him from a manslaughter conviction, because genuine subjective ignorance of a risk defeats the mens rea of recklessness regardless of how unreasonable the belief is.

c. It reduces his potential liability to simple negligence, because his failure to consult the city sewer maps constitutes an ordinary deviation from standard commercial care.

d. It elevates his liability to intentional murder, because proceeding with the dumping despite knowing about the flammable fumes constitutes the functional equivalent of premeditation.

e. It does not protect him, because if an ordinary person knowing the solvent emitted flammable fumes would perceive the grave danger, Oscar is treated as acting recklessly.

Answer: (e)

Explanation: (e) is correct because *Welansky* establishes a "constructive" standard for recklessness. Even if Oscar subjectively believed the rain would make the chemicals safe, he is liable if a reasonable person who knew the solvent emitted flammable fumes would have perceived the grave danger. (b) is wrong because constructive recklessness explicitly overrides genuine subjective ignorance if a reasonable person would have recognized the risk. (c) is wrong because constructive awareness of a grave danger satisfies the higher standard of wanton or reckless conduct, not merely ordinary negligence. (a) is wrong because *Welansky* still requires the conduct to be wantonly or recklessly dangerous, not merely intentional. (d) is wrong because constructive recklessness establishes involuntary manslaughter, not intentional or premeditated murder.

Q19. Are Oscar and Penelope in constructive possession of the 20 kilograms of methamphetamine?

a. Neither is in constructive possession, because the presence of multiple people with access to the living room destroys the exclusivity required to establish criminal dominion and control.

b. Both are in constructive possession, because Oscar had power over the premises as the lessee and Penelope's personal items on the table indicate her power and intent to control the drugs.

c. Only Oscar is in constructive possession, because his name is the sole name on the stash house lease, granting him exclusive legal authority over the premises.

d. Only Penelope is in constructive possession, because she was physically present in the adjacent bedroom while Oscar was entirely absent from the property during the raid.

e. Neither is in constructive possession, because neither individual was in direct physical contact with the methamphetamine at the exact moment the police investigators entered the house.

Answer: (b)

Explanation: (b) is correct because constructive possession requires the power and intent to exercise dominion and control over the contraband. Oscar's lease and ledgers establish his control, while Penelope's personal items placed directly next to the drugs establish hers. Joint constructive possession is legally permissible. (c) is wrong because an exclusive lease does not prevent another occupant from simultaneously exercising constructive possession. (d) is wrong because physical presence at the time of the raid is not required; Oscar's power to control the premises suffices. (e) is wrong because constructive possession inherently covers situations where the defendants lack direct physical contact. (a) is wrong because exclusivity is not required; multiple individuals can jointly possess the same contraband.

Q20. Under the traditional common law rule applied in *Girouard*, can Nora's charge be reduced from murder to voluntary manslaughter?

a. Yes, because discovering that a trusted associate has been wearing a federal wire for six months would cause any reasonable person to temporarily lose their self-control.

b. No, because the doctrine of transferred intent prevents Nora from claiming adequate provocation when she deliberately brings a loaded weapon to a meeting under false pretenses.

c. No, because the traditional common law categorical approach dictates that insulting words or revelations alone, unaccompanied by physical assault, are never adequate provocation.

d. Yes, because Rachel's verbal insults and betrayal provoked an actual, subjective heat of passion in Nora, as evidenced by her trembling hands and flushed face.

e. No, because sufficient cooling time elapsed between the initial six-month betrayal and Nora's decision to draw her pistol, thereby defeating the suddenness requirement.

Answer: (c)

Explanation: (c) is correct because under the traditional common law categorical approach (*Girouard*), insulting words, informational revelations, or verbal abuse—no matter how opprobrious—can never constitute legally adequate provocation to mitigate murder to manslaughter. (a) is wrong because the traditional rule relies on fixed categories (e.g., discovering adultery, mutual combat) rather than a generalized reasonable person evaluation of words. (d) is wrong because actual, subjective heat of passion is necessary but not sufficient; the provocation must also fit a legally adequate category. (e) is wrong because the defense fails on the adequate provocation element immediately, rendering the cooling time analysis moot. (b) is wrong because the doctrine of transferred intent applies to harming the wrong victim, which is irrelevant to the provocation analysis.

Q21. Assume the jurisdiction has adopted the Model Penal Code's Extreme Emotional Disturbance (EED) defense. How would Nora's response to Rachel's revelation be evaluated?

a. The defense would be automatically granted because the MPC explicitly lists betrayal by a criminal informant as a recognized categorical trigger for extreme emotional disturbance.

b. The jury would apply a purely subjective standard, reducing the charge to manslaughter if Nora genuinely felt enraged, regardless of whether her reaction was objectively reasonable.

c. The jury would assess whether she acted under an extreme emotional disturbance for which there is a reasonable explanation, judged from the viewpoint of a person in her situation.

d. The judge would dismiss the defense prior to trial because the MPC requires that the emotional disturbance build over a long period of time rather than arising instantly.

e. The defense would be categorically barred because Nora's underlying involvement in a methamphetamine syndicate precludes her from claiming a reasonable explanation or excuse.

Answer: (c)

Explanation: (c) is correct because the MPC's Extreme Emotional Disturbance (EED) standard requires a hybrid subjective-objective inquiry. The jury evaluates whether the defendant acted under extreme emotional disturbance for which there is a "reasonable explanation or excuse," judged from the viewpoint of a person in the actor's situation. (a) is wrong because the MPC completely abolishes categorical triggers in favor of the flexible hybrid standard. (e) is wrong because the MPC does not categorically exclude criminals from asserting the defense, though the jury considers their situation. (d) is wrong because EED does not require the disturbance to build over time; it explicitly abandons the common law's suddenness requirement. (b) is wrong because the standard is not purely subjective; it requires a "reasonable explanation or excuse."

Scenario 3: The Distribution Ring

Facts

Assume the following facts can be proven beyond a reasonable doubt.

1. Investigators established that Felix had exclusive control of a key to a central courtyard vault that contained bulk quantities of fentanyl, a digital scale, and hundreds of empty glassine envelopes.

2. Facing armed encroachment from a rival crew, Felix called a meeting with George, Helen, and Ian. Felix placed $1,500 on the table and stated, "We defend this turf against the rivals by any means necessary. Nobody sells here but us."

3. George, Helen, and Ian all nodded silently, each taking $500 from the table to seal the arrangement.

4. Felix handed George a loaded 9mm handgun, instructing him: "Go to 4th Street and fire into the air to scare their lookouts away." George replied, "I'll do more than scare them. I'm going to put one of them in the ground." Felix shrugged, turned his back, and walked away.

5. George drove toward 4th Street, slowly cruising the blocks to locate a rival lookout to shoot. While he was still three blocks away and had not yet spotted anyone, police pulled him over for a broken taillight. Officers saw the loaded 9mm on the passenger seat and arrested him.

6. The following evening, Ian proposed to Helen that they raid the rival crew's stash house. Ian stated, "I'm only bringing this baseball bat to smash their equipment and grab the cash." Helen agreed to act as a lookout.

7. Helen stood on the corner and texted Ian when the street was clear, successfully facilitating Ian's entry into the stash house.
8. Inside the stash house, Ian was confronted by a rival guard who drew a weapon. Ian immediately dropped the bat, drew a concealed handgun that he had secretly brought without Helen's knowledge, and shot the guard dead before the guard could fire.
9. Hearing the gunshot, Helen ran from the corner, yelling to herself, "I'm completely out of this!"
10. Ten minutes later, Ian knocked on Helen's apartment door asking to hide from the police. Helen let him in and gave him a change of clothes.
11. Felix was asleep in his apartment during the stash house robbery. He had neither authorized nor been informed of Ian and Helen's specific plan to raid the stash house.

Characters (Instructor Only)

- **Felix** (Crew Chief / Defendant): constructive possession, accomplice mens rea, and Pinkerton liability
- **George** (Shooter / Defendant): attempt actus reus tests (Proximity vs. Substantial Step)
- **Helen** (Lookout / Defendant): accomplice actus reus, temporal advance knowledge, NPC vs. NPC reform, withdrawal, and accessory after the fact
- **Ian** (Enforcer / Defendant): self-defense limits (initial aggressor) and felony murder

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Q22. Assume that, whether or not a conspiracy existed, it is established that the vault contained fentanyl. The prosecution charges Felix with possession of fentanyl with intent to distribute.

a. Guilty, because his exclusive control of the key to the vault establishes the power and intent to exercise dominion over the narcotics.
b. Not guilty, because he was not physically holding or carrying the narcotics on his person when investigators located the stash.
c. Not guilty, because there is no direct evidence that he personally packaged or physically handled the specific glassine envelopes.
d. Guilty, because the discovery of a digital scale alongside the narcotics establishes a strict liability presumption of intent to distribute.
e. Guilty, because his mere presence in the same building as a vault containing narcotics is legally sufficient to establish constructive possession.

Answer: (a)

Explanation: Constructive possession requires the power and intent to exercise dominion or control over the contraband. Felix's exclusive control of the key to the vault establishes his power over the narcotics inside. (b) is wrong because physical possession is not required. (c) is wrong because handling the exact packaging is unnecessary when dominion over the stash is proven. (e) is wrong because mere presence without control is legally insufficient. (d) is wrong because a scale is circumstantial evidence of intent to distribute, not a strict liability trigger that waives the intent requirement.

Q23. The prosecution charges George, Helen, and Ian with conspiracy to defend the drug turf by unlawful means.

a. Guilty, because mere presence at a meeting where a crime is proposed automatically establishes a conspiratorial agreement under the MPC.

b. Not guilty, because the unilateral approach to conspiracy requires at least one party to be a government agent or informant.

c. Guilty, because Wharton's Rule mandates that any crime involving multiple participants be charged as a conspiracy regardless of explicit agreement.

d. Not guilty, because they did not explicitly state their verbal assent to Felix's proposed plan to defend the turf by any means.

e. Guilty, because their silent nods and acceptance of the money constitute coordinated conduct from which a mutual understanding can be inferred.

Answer: (e)

Explanation: Conspiratorial agreement is rarely proven by explicit words; it can be inferred from coordinated conduct with no plausible innocent explanation. Nodding and taking the money in response to Felix's proposal establishes mutual understanding. (d) is wrong because explicit verbal assent is not required. (b) is wrong because the unilateral approach applies when one party feigns agreement, but here there is actual multilateral agreement. (a) is wrong because mere presence without coordinated conduct is insufficient. (c) is wrong because Wharton's Rule applies to inherently bilateral crimes (like dueling), not a turf defense conspiracy.

Q24. Assume George committed attempted murder. The prosecution charges Felix as an accomplice to attempted murder.

a. Guilty, because Felix provided the loaded handgun to George with the knowledge that George intended to put someone in the ground.

b. Guilty, because Felix's initial instruction to fire into the air made him strictly liable for any subsequent lethal escalation by George.

c. Not guilty, because Felix was not physically present at the scene when George cruised the blocks looking for a rival to shoot.

d. Not guilty, because an accomplice must possess advance knowledge of a weapon before the crime commences, which Felix lacked here.

e. Not guilty, because Felix's shrug and walking away do not establish that he acted with the purpose to promote or facilitate a killing.

Answer: (e)

Explanation: Accomplice liability requires the purpose to promote or facilitate the offense. Felix's shrug after George announced his intent to kill does not establish a purposive stake in the murder; his stated purpose was only to scare lookouts. (a) is wrong because mere knowledge of George's intent is insufficient for complicity under the Gladstone standard. (b) is wrong because complicity does not impose strict liability for a principal's escalation absent natural and probable consequences. (c) is wrong because physical presence is not required to be an accomplice. (d) is wrong because Felix actually supplied the weapon, making advance knowledge irrelevant here.

Q25. The prosecution charges George with attempted murder. Compare George's liability under the dangerous proximity test and the substantial step test.

a. George is not guilty under either test, because he had not yet spotted a rival lookout, making his actions mere preparation under both standards.

b. George is guilty under the dangerous proximity test, because acquiring the handgun and driving three blocks satisfied the requirement of coming dangerously close.

c. George is guilty under both tests, because his specific intent to kill a rival lookout overrides the standard actus reus requirement for attempted murder.

d. George is guilty under the MPC substantial step test but likely not guilty under the dangerous proximity test, because he was still searching for a victim.

e. George is not guilty under the substantial step test, because driving with a broken taillight was not strongly corroborative of his stated criminal purpose.

Answer: (d)

Explanation: Under the MPC substantial step test, cruising to find a victim is "searching for the contemplated victim" and satisfies the actus reus. Under the common law dangerous proximity test, George had not come dangerously close to completion because he had not found a target yet (analogous to Rizzo). (b) is wrong because driving around without finding the victim fails the dangerous proximity test. (a) is wrong because under the MPC, searching is a substantial step, not mere preparation. (c) is wrong because specific intent does not waive the actus reus element. (e) is wrong because searching for a victim with a loaded gun strongly corroborates his intent, regardless of the taillight.

Q26. Assume George is guilty of attempted murder. The prosecution charges Felix with attempted murder under the Pinkerton doctrine.

a. Not guilty, because Felix did not explicitly authorize George to shoot a rival, limiting his liability strictly to the agreed-upon warning shots.

b. Guilty, because George's attempted murder was a foreseeable act committed by a coconspirator in furtherance of the ongoing turf defense conspiracy.

c. Guilty, because the Model Penal Code explicitly endorses Pinkerton liability for all foreseeable substantive acts committed by any coconspirators.

d. Not guilty, because the target crime of attempted murder requires specific intent, which cannot be established vicariously through another conspirator's actions.

e. Not guilty, because Felix effectively withdrew from the conspiracy by turning his back and walking away before George left for 4th Street.

Answer: (b)

Explanation: Under Pinkerton, a conspirator is vicariously liable for the substantive offenses of coconspirators committed in furtherance of the ongoing conspiracy, provided they are reasonably foreseeable. Attempted murder of a rival is highly foreseeable in an armed "turf defense" conspiracy. (c) is wrong because the MPC explicitly rejects Pinkerton liability. (a) is wrong because Pinkerton liability extends to foreseeable acts, not just explicitly authorized ones. (d) is wrong because Pinkerton specifically allows vicarious liability even for specific intent crimes. (e) is wrong because walking away is not an affirmative step communicating withdrawal to law enforcement or coconspirators.

Q27. The prosecution charges Helen as an accomplice to the stash house burglary.

a. Not guilty, because her text message merely facilitated a result that Ian would have eventually achieved anyway without her help.

b. Guilty, because her act of standing on the corner and texting Ian successfully facilitated his entry into the rival stash house.

c. Guilty, because her mere presence on the street corner near the crime scene is sufficient to establish the actus reus for complicity.

d. Guilty, because the natural and probable consequences doctrine dictates that a lookout is strictly liable for all offenses committed inside.

e. Not guilty, because she did not personally enter the stash house or physically smash any of the rival crew's equipment inside.

Answer: (b)

Explanation: The actus reus for accomplice liability requires only that the defendant solicited, aided, or attempted to aid the principal. Helen's acting as a lookout and texting Ian successfully facilitated his entry, satisfying this low threshold. (e) is wrong because an accomplice need not personally commit the actus reus of the underlying crime. (a) is wrong because accomplice liability requires facilitation, not strict "but-for" causation. (c) is wrong because mere presence without encouragement or aid is legally insufficient. (d) is wrong because the natural and probable consequences doctrine is a liability extension for additional crimes, not the basis for the actus reus of the target crime itself.

Q28. The prosecution charges Ian with murder for shooting the guard. Ian asserts a claim of self-defense.

a. Ian's self-defense claim will fail, because his use of a concealed handgun violates the proportionality requirement against a drawn weapon.

b. Ian's self-defense claim will fail, because he was the initial aggressor actively committing a robbery when the guard drew a weapon.

c. Ian's self-defense claim will succeed, because he dropped the baseball bat and shot only to prevent his own imminent death.

d. Ian's self-defense claim will fail, because the specific intent required for murder automatically negates any available justification or excuse defenses.

e. Ian's self-defense claim will succeed, because the guard escalated the encounter by drawing a lethal weapon while Ian only held a bat.

Answer: (b)

Explanation: A defendant cannot claim self-defense if they are the initial aggressor or are actively committing a forcible felony (like robbery) that provokes the defensive response. Ian's armed invasion of the stash house makes him the initial aggressor. (e) is wrong because the guard's lethal response to an armed robbery is legally justified, meaning it does not restore Ian's right to self-defense. (a) is wrong because the initial aggressor bar defeats the claim entirely, regardless of proportionality. (c) is wrong because dropping the bat does not constitute a valid withdrawal when he immediately draws a gun. (d) is wrong because a valid self-defense claim acts as a justification that negates criminal liability even for specific intent crimes.

Q29. Assume Ian's self-defense claim fails. The prosecution charges Ian with first-degree felony murder.

a. Guilty, because Ian caused the guard's death during the commission of a predicate felony, regardless of whether he intended to kill.

b. Guilty, because Ian possessed the specific intent to kill the guard when he intentionally drew the concealed handgun and fired it.

c. Not guilty, because the guard drew his weapon first, breaking the direct causal chain required for standard felony murder liability.

d. Not guilty, because Ian's original plan was only to smash equipment and grab cash, not to commit a homicide during the raid.

e. Not guilty, because the merger doctrine prevents a burglary that results in a death from serving as a valid felony murder predicate.

Answer: (a)

Explanation: Under the felony murder rule, a defendant is strictly liable for a death caused during the commission or attempted commission of a predicate felony (such as robbery or burglary). Ian caused the guard's death during the stash house raid. (b) is wrong because felony murder requires no proof of specific intent to kill. (c) is wrong because a victim's armed resistance is a highly foreseeable response that does not break the causal chain. (d) is wrong because the original plan not to kill is irrelevant; felony murder holds defendants liable for unintended deaths. (e) is wrong because the merger doctrine applies to assaultive felonies, not independent felonies like robbery or burglary.

Q30. The prosecution charges Helen as an accomplice to Ian's armed offense. Apply the federal standard from *Rosemond v. United States*.

a. Not guilty, because Helen lacked advance knowledge that Ian would use a handgun at a time when she had a meaningful opportunity to walk away.

b. Guilty, because Helen continued to participate in the robbery scheme even after she learned about Ian's concealed handgun inside the house.

c. Not guilty, because Helen ran away immediately after hearing the gunshot, establishing a complete and voluntary withdrawal from the crime.

d. Guilty, because Helen's knowledge that Ian carried a baseball bat satisfies the requirement that she knew a deadly weapon would be used.

e. Guilty, because her facilitation of the stash house entry makes her strictly liable for any weapon Ian ultimately chose to deploy inside.

Answer: (a)

Explanation: Under the federal standard (Rosemond v. United States), an accomplice to an armed offense must have advance knowledge that a firearm will be used at a time when they have a meaningful opportunity to walk away. Helen did not know about the concealed handgun. (c) is wrong because running away after the gunshot is too late to qualify as a valid withdrawal. (b) is wrong because there are no facts indicating she ever learned about the handgun or continued participating after it was drawn. (d) is wrong because knowing about a bat does not constitute advance knowledge of a firearm for a firearm-specific charge.

(e) is wrong because Rosemond requires specific advance knowledge, rejecting strict liability for a confederate's weapon choice.

Q31. The jurisdiction applies the traditional natural and probable consequences (NPC) doctrine. The prosecution charges Helen with murder.

a. Guilty, because the traditional NPC doctrine holds accomplices strictly liable for all crimes committed by the principal, whether foreseeable or not.

b. Not guilty, because Helen only agreed to a robbery involving a baseball bat, and the use of a firearm was an unforeseeable escalation.

c. Not guilty, because Helen did not personally possess malice aforethought or the specific intent to cause the rival guard's death.

d. Guilty, if a jury determines that a fatal shooting was a natural and foreseeable consequence of robbing an armed rival crew's stash house.

e. Not guilty, because her role as a lookout was inevitably incident to the commission of the underlying stash house burglary.

Answer: (d)

Explanation: Under the traditional natural and probable consequences (NPC) doctrine, an accomplice to a target crime (robbery) is liable for any other crime (murder) committed by the principal that is a foreseeable consequence of the agreed-upon criminal activity. (a) is wrong because NPC requires foreseeability, not strict liability for unforeseeable acts. (b) is wrong because a jury could easily find that a gunfight is a foreseeable consequence of raiding a rival cartel's stash house, even if only a bat was planned. (c) is wrong because the NPC doctrine imputes liability based on foreseeability, circumventing the need for personal malice. (e) is wrong because the "inevitably incident" exception (Gebardi) applies to necessary victims shielded by statute, not lookouts.

Q32. The jurisdiction has enacted modern NPC reform identical to California's SB 1437. The prosecution charges Helen with murder.

a. Guilty of murder, because the reform merely requires that the underlying felony of robbery be inherently dangerous to human life.

b. Not guilty of murder, because the reform entirely abolished all forms of felony murder and accomplice liability for homicide in the jurisdiction.

c. Not guilty of murder, unless the jury finds she was a major participant in the felony who acted with reckless indifference to human life.

d. Not guilty of murder, because the reform requires the prosecution to prove she specifically intended for the rival guard to die.

e. Guilty of murder, because acting as a lookout and sending a text message constitutes per se reckless indifference to human life.

Answer: (c)

Explanation: Under modern NPC reform like California's SB 1437, an accomplice can no longer be convicted of murder based solely on foreseeability. They must personally act with malice or be a major participant who acts with reckless indifference to human life. (b) is wrong because the reform did not abolish all felony murder; it preserved liability for major participants acting with reckless indifference. (a) is wrong because the reform requires an individual assessment of the defendant's participation and mindset, not just the nature of the felony. (e) is wrong because being a peripheral lookout does not constitute per se reckless indifference. (d) is wrong because specific intent to kill is not strictly required if the major participant/reckless indifference test is met.

Q33. Assume Helen is charged as an accomplice to the completed stash house robbery. She asserts a withdrawal defense based on her actions after hearing the gunshot.

a. The defense will fail, because withdrawal requires affirmative steps to defeat the crime before it is completed, not merely fleeing afterward.

b. The defense will succeed, because she abandoned the criminal effort and left the scene before the police arrived to investigate the shooting.

c. The defense will succeed, because running from the corner severed her physical presence and neutralized the impact of her prior assistance.

d. The defense will fail, because a valid withdrawal from accomplice liability requires the defendant to physically prevent the principal from escaping.

e. The defense will succeed, because her verbal declaration out loud effectively communicated her complete withdrawal to the principal in the house.

Answer: (a)

Explanation: To successfully withdraw from complicity or conspiracy, a defendant must take affirmative steps to disavow the crime and neutralize their prior assistance before the crime is completed. Helen only ran away and yelled to herself after the fatal shot was fired. (d) is wrong because the law requires communicating the withdrawal or notifying police, not necessarily physically restraining the principal. (e) is wrong because yelling to herself did not effectively communicate her withdrawal to Ian. (c) is wrong because fleeing does not neutralize the fact that she had already successfully acted as a lookout. (b) is wrong because the crime of homicide was already completed when she abandoned the effort.

Q34. Assume Ian committed the robbery and homicide. The prosecution charges Helen as an accessory after the fact for letting Ian into her apartment and giving him clothes.

a. Guilty, because her prior role as a lookout automatically establishes her continuing liability as an accessory after the fact for the escape.

b. Not guilty, because she did not use force or deception against law enforcement to actively shield Ian from physical discovery.

c. Guilty, because she provided assistance to Ian with the intent to help him avoid capture after the robbery and homicide were complete.

d. Not guilty, because she and Ian were part of the same original conspiracy, precluding a separate accessory charge for the same transaction.

e. Not guilty, because providing a change of clothes does not satisfy the substantial step requirement for actionable post-crime assistance.

Answer: (c)

Explanation: Accessory after the fact is a separate, lesser offense for someone who provides assistance to a principal with the intent to help them avoid capture after the target crime is fully completed. Helen giving Ian shelter and a change of clothes satisfies this. (a) is wrong because prior complicity in the target offense does not automatically create liability for the separate offense of post-crime assistance. (e) is wrong because providing clothing and shelter is the classic form of actionable post-crime assistance. (d) is wrong because being in an original conspiracy does not legally preclude an accessory after the fact charge for subsequent cover-up efforts. (b) is wrong because force or deception against law enforcement are not required elements.

Q35. The prosecution charges Felix with the stash house robbery under the Pinkerton doctrine.

a. Guilty, because Felix's status as a crew chief makes him strictly liable for all criminal acts committed by his organizational subordinates.

b. Not guilty, because the stash house raid was proposed by Ian independently, severing the direct causal link to Felix's original agreement.

c. Not guilty, because Felix was asleep during the robbery and did not personally commit any overt act in furtherance of it.

d. Not guilty, because Felix had not been informed of the specific plan, meaning he lacked the specific intent required for robbery.

e. Guilty, because raiding the rival stash house was a foreseeable crime committed by Ian in furtherance of the ongoing turf defense conspiracy.

Answer: (e)

Explanation: The Pinkerton doctrine holds conspirators vicariously liable for the foreseeable substantive crimes committed by their coconspirators in furtherance of the ongoing conspiracy. Raiding a rival's stash house is a highly foreseeable act in a conspiracy dedicated to defending drug turf "by any means necessary." (a) is wrong because Pinkerton liability is based on

conspiracy membership and foreseeability, not a strict liability theory of corporate or organizational command. (c) is wrong because Pinkerton does not require the defendant to be awake or personally participate in the substantive offense. (b) is wrong because independent planning by coconspirators does not sever Pinkerton liability if the act remains in furtherance of the overarching agreement. (d) is wrong because Pinkerton imputes liability even without specific intent for the target offense.

Q36. Assume the jurisdiction has adopted the Model Penal Code (MPC) and completely rejected the Pinkerton doctrine. The prosecution charges Felix with the stash house robbery.

a. Guilty, because the MPC retains vicarious liability for substantive crimes that are the express or implied object of the conspiratorial agreement.

b. Not guilty, because the MPC requires that Felix have been physically present at the stash house to be liable for the substantive offense.

c. Not guilty, because the MPC requires proof that Felix actually aided or encouraged the specific robbery with the purpose to promote it.

d. Guilty, because Felix's initial payment of $500 satisfied the MPC's requirement for financial sponsorship of the subsequent stash house robbery.

e. Guilty, because under the MPC, the initial conspiracy agreement constitutes an attempt to aid all future foreseeable crimes by coconspirators.

Answer: (c)

Explanation: The Model Penal Code explicitly rejects the Pinkerton doctrine. Under the MPC, a conspirator is not vicariously liable for a coconspirator's crimes simply by virtue of conspiracy membership; the prosecution must prove the traditional elements of accomplice liability (aiding/encouraging with the purpose to promote the specific crime). (b) is wrong because physical presence is not required for accomplice liability under the MPC. (e) is wrong because the MPC rejects the idea that a general conspiracy agreement serves as an attempt to aid all future crimes. (a) is wrong because the MPC rejects vicarious liability entirely, requiring individualized complicity. (d) is wrong because the initial $500 was for the general turf defense, not purposive sponsorship of the uncommunicated stash house robbery.

Q37. Assume it is established that Felix constructively possessed the fentanyl. The prosecution charges him with possession with intent to distribute.

a. Not guilty, because he did not verbally confess to selling the drugs or engage in a direct hand-to-hand transaction with an undercover buyer.

b. Guilty, because the presence of bulk quantities, a digital scale, and empty glassine envelopes strongly corroborates the intent to distribute.

c. Guilty, because constructive possession of any measurable amount of narcotics automatically triggers a mandatory commercial distribution enhancement.

d. Guilty, because the law strictly presumes that anyone who holds a key to a shared central courtyard vault operates as a drug distributor.

e. Not guilty, because the digital scale and empty envelopes are equally consistent with the personal recreational use of bulk fentanyl.

Answer: (b)

Explanation: Intent to distribute can be proven circumstantially. The presence of bulk quantities of fentanyl, a digital scale, and hundreds of empty glassine envelopes strongly corroborates the intent to package and distribute the drugs. (a) is wrong because direct evidence (confession or observed sale) is not required. (e) is wrong because bulk quantities combined with packaging materials (envelopes) and a scale are not equally consistent with mere personal use. (c) is wrong because constructive possession of any measurable amount does not automatically trigger a mandatory enhancement; intent must be proven. (d) is wrong because the law does not strictly presume commercial distribution solely from possessing a key to a courtyard vault.

Q38. Assume Helen is charged with the guard's murder. Compare her liability under the traditional NPC doctrine versus modern NPC reform (like SB 1437).

a. She is not guilty under either standard, because she only agreed to a robbery with a baseball bat and the firearm escalation was unforeseeable.

b. She is guilty under both standards, because acting as a lookout is inherently dangerous and satisfies the foreseeability requirement of both rules.

c. She is likely guilty under traditional NPC based on foreseeability, and guilty under modern reform because the reform explicitly targets armed robbery lookouts.

d. She is likely guilty under traditional NPC based on foreseeability, but not guilty under modern reform unless she acted with reckless indifference.

e. She is not guilty under traditional NPC because she lacked malice, but guilty under modern reform because she successfully facilitated the predicate felony.

Answer: (d)

Explanation: The traditional NPC doctrine holds accomplices liable for foreseeable crimes (like a shooting during a stash house raid). Modern reform (SB 1437) eliminated foreseeability-based murder liability, requiring the accomplice to be a major participant acting with reckless indifference to human life. (b) is wrong because modern reform rejects foreseeability as sufficient. (a) is wrong because a jury could find a shooting foreseeable during an armed cartel robbery under traditional NPC. (e) is wrong because traditional NPC does not require

personal malice, and modern reform requires more than mere successful facilitation of the predicate felony. (c) is wrong because modern reform protects peripheral actors like lookouts rather than explicitly targeting them.

Q39. Assume Felix is charged with the stash house robbery. Compare his liability under the traditional Pinkerton doctrine versus the Model Penal Code (MPC).

a. He is guilty under both standards, because his formal role as crew chief creates strict vicarious liability for all subordinate criminal activities.

b. He is likely guilty under Pinkerton due to the robbery's foreseeability, and guilty under the MPC because the MPC formally retains the Pinkerton doctrine.

c. He is likely guilty under Pinkerton due to the robbery's foreseeability, but not guilty under the MPC because he did not aid with purpose.

d. He is not guilty under either standard, because Ian and Helen independently devised the stash house raid without Felix's explicit prior authorization.

e. He is not guilty under Pinkerton because the raid was a separate conspiracy, but guilty under the MPC because he funded the turf defense.

Answer: (c)

Explanation: Under Pinkerton, a conspirator is vicariously liable for the foreseeable crimes of coconspirators committed in furtherance of the conspiracy. The MPC rejects this, requiring proof that the defendant aided the specific crime with the purpose to promote it. (a) is wrong because vicarious liability requires an ongoing conspiracy and foreseeability, not just a formal title like "crew chief." (d) is wrong because Pinkerton covers foreseeable independent planning by coconspirators in furtherance of the goal. (e) is wrong because funding the general turf defense does not constitute purposive aiding of the uncommunicated stash house raid under the MPC. (b) is wrong because the MPC explicitly rejects the Pinkerton doctrine.

Scenario 4: The Cornered Defenses

Facts

Assume the following facts can be proven beyond a reasonable doubt.

1. The Bayside Syndicate operates on the docks. Commander Vance, a corrupt police officer, acts as the central "hub," coordinating three separate smuggling crews that never interact with each other. For three years, Vance has directed a continuous pattern of bribery and extortion to protect these crews.

2. After a federal task force begins investigating Bayside, Vance panics. He corners Marcus, an enforcer for one of the crews, in an alley. Vance holds a gun to Marcus's head and demands that Marcus burn down a waterfront warehouse belonging to Silas, a rival boss, to destroy evidence of Vance's corruption stored inside.
3. Vance tells Marcus: "Burn that warehouse to the ground tonight, or I will send my tactical unit to your mother's house at midnight to execute everyone inside." Because Vance commands the local police tactical unit, Marcus reasonably believes reporting the threat to local authorities would be futile.
4. Marcus decides that destroying the property is the only way to save his family's lives. To gain entry, Marcus approaches Dave, a corrupt security guard at Silas's warehouse. Dave charges Marcus a flat $500 "blind eye" fee to leave the back door unlocked. Dave tells Marcus, "I know you're here to torch the place, but I have no stake in your beef. Just pay me up front." Dave takes the money and unlocks the door.
5. Marcus recruits Leo to help him burn the warehouse, agreeing to pay him $200 from his savings. Marcus does not tell Leo about Vance's threat. As they pour gasoline inside, a watchman surprises them. Without a word, Leo draws a concealed handgun and shoots the watchman dead.
6. At trial, the defense psychiatrist testifies that Leo's schizophrenia caused a hallucination that the watchman was a "demon." The prosecution expert agrees Leo has schizophrenia but testifies that his antisocial personality disorder (APD) and recent voluntary meth use were the actual drivers of his aggressive reaction.
7. During his arrest hours later, Leo is found drawing insect hives on the holding cell wall. He tells the booking officer, "The hive is closed now. The lead demon is dead." He makes no attempt to hide his weapon and seems unconcerned about the police presence.
8. The next afternoon, Silas learns of the arson and is sitting in his parked car at a gas station when he sees Trey, a known Bayside hitman, walking rapidly toward his vehicle with a hand concealed in his jacket. Silas has a clear, unobstructed path to put the car in drive and leave safely.
9. Instead of retreating, Silas unholsters his permitted firearm and lies in wait inside the vehicle, intending to shoot Trey as soon as Trey reaches the door. A passing police officer spots the drawn weapon and arrests Silas before Trey arrives. Investigators later determine Trey was unarmed and just walking to the convenience store.
10. When police arrest Silas, they search the vehicle, which is registered to his girlfriend. In the trunk, they find a locked metal lockbox containing 500 grams of fentanyl packaged in individual baggies. Silas does not have the key on his person, but admits to police he knew the box was there.

Characters (Instructor Only)

- **Marcus** (Defendant (Enforcer)): Justification vs. Excuse, Duress, and Derivative Liability

- **Leo** (Co-Defendant (Associate)): Homicide Grading and Insanity Defenses
- **Cmdr. Vance** (Co-Conspirator (Corrupt Cop)): RICO Syndicate Structure (Hub-and-Spoke)
- **Dave** (Co-Conspirator (Security Guard)): Accomplice Liability (Purpose vs. Knowledge) and RICO Conspiracy
- **Silas** (Defendant (Rival)): Attempt, Self-Defense (Duty to Retreat), and Constructive Possession
- **Trey** (Victim (Hitman)): Self-Defense Objectivity

Q40. Assume that Marcus is charged with arson for burning the warehouse and raises an affirmative defense based on Vance's threat to his family. How does criminal law classify Marcus's potential defense regarding the warehouse arson?

a. It is classified as an excuse, because the necessity defense historically applies whenever a defendant is compelled by overwhelming human forces to violate the law.

b. It is classified as a justification, because necessity doctrine establishes that Marcus made the morally correct choice in prioritizing his family's survival over property.

c. It is classified as an excuse, because duress recognizes that the criminal act remains wrongful but the coerced actor is not blamed for succumbing to the threat.

d. It is classified as a justification, because any third party who knowingly assisted Marcus in committing the arson would automatically share in his immunity from punishment.

e. It is classified as neither, because affirmative defenses are categorically unavailable when the coercion involves a threat directed at a third party rather than the defendant.

Answer: (c)

Explanation: Duress is paradigmatically an excuse, not a justification. When a defendant acts under duress, the law considers the act (arson) to be wrong, but excuses the actor because unlawful coercion overrode their free will. (b) is wrong because duress, not necessity, applies to specific human threats of force, and duress is an excuse. (a) is wrong because necessity traditionally applies to natural forces, whereas human coercion falls under duress. (d) is wrong because justification defenses can be "shared" with accomplices, but excuse defenses are personal to the coerced actor. (e) is wrong because modern jurisdictions widely allow duress claims for threats directed at third parties (like Marcus's family).

Q41. Assume that, regardless of the ultimate outcome of the arson charge, the prosecution argues that Marcus's duress defense fails entirely because Vance was not physically present at the warehouse. How does Vance's absence affect Marcus's defense under the strict common-law approach to imminence?

a. The defense fails, because the common law categorically bars duress whenever the threatened harm is directed at a family member rather than the defendant himself.

b. The defense succeeds, because the threat to Marcus's mother was continuous and reporting the extortion to corrupt local police authorities was demonstrably futile.

c. The defense fails, because the strict common-law standard requires the threatening party to be physically present and the threatened harm to be immediately impending.

d. The defense succeeds, because the common law only requires that a person of reasonable firmness in Marcus's situation would have been entirely unable to resist the coercion.

e. The defense fails, because the common law recognizes duress as a valid defense only when the defendant faces a threat of serious bodily injury from a government actor.

Answer: (c)

Explanation: The strict common-law approach requires physical presence to satisfy the imminence requirement of duress. Because Vance threatened a future harm ("at midnight") and was not physically present during the arson, the threat was not strictly imminent. (d) is wrong because the "person of reasonable firmness" is the MPC standard, not the strict common law. (a) is wrong because the common law does allow duress for threats against close relatives. (b) is wrong because while futility addresses the "no reasonable alternative" element, it does not cure a lack of strict imminence under the traditional rule. (e) is wrong because duress does not require the threat to come from a government actor; any human threat of death or serious injury qualifies.

Q42. Assume Marcus is charged with felony murder for the watchman's death, predicated on his participation in the arson. In a jurisdiction that follows the minority exception (e.g., Michigan or Maryland) for felony murder and duress, how will the court likely rule on Marcus's defense?

a. The defense is permitted, because Marcus did not intentionally choose to take a life, but rather was coerced into committing the underlying predicate felony of arson.

b. The defense is permitted, because the Model Penal Code provides that duress is universally available as an affirmative defense to all crimes, including intentional murder.

c. The defense is permitted, because Marcus could not have reasonably foreseen that Leo would carry a concealed handgun or deliberately use lethal force during the arson.

d. The defense is barred, because Marcus was at fault in creating the emergency by voluntarily associating with Vance's criminal syndicate prior to the specific threat.

e. The defense is barred, because the strict common-law prohibition against asserting duress for any homicide offense automatically and invariably extends to felony murder.

Answer: (a)

Explanation: While the common law categorically bars duress as a defense to intentional murder (the "choosing between lives" rationale), the minority exception allows duress for felony murder if the defense is available for the underlying predicate felony. Because Marcus was coerced into the arson and did not choose to kill, the rationale for the murder bar does not apply. (e) is wrong because it describes the traditional common-law rule, explicitly rejecting the minority exception assumed in the prompt. (b) is wrong because while the MPC allows duress for murder, the prompt asks about the specific Michigan/Maryland felony-murder exception. (d) is wrong because fault in creating the situation defeats duress, but the facts do not state Marcus joined the syndicate voluntarily to invite this specific coercion. (c) is wrong because reasonable foreseeability goes to Pinkerton liability, not the structural availability of a duress defense.

Q43. Assume that Marcus's duress defense fails and he is convicted of conspiracy to commit arson. The prosecution also charges Marcus with the substantive offense of murder based on the Pinkerton doctrine for Leo's shooting of the watchman. Will Marcus be held liable for the murder under Pinkerton?

a. Yes, because a homicide committed by a co-conspirator to eliminate a witness is a reasonably foreseeable consequence of a conspiracy to commit a major felony like arson.

b. No, because Marcus did not possess any advance knowledge that Leo was carrying a concealed handgun or that Leo intended to use lethal force during the assignment.

c. No, because the Pinkerton doctrine is only applicable when the defendant is physically present and actively encourages the principal's substantive crime during its commission.

d. Yes, because Marcus and Leo both possessed the specific intent to kill any person who might interfere with their corrupt agreement to destroy the commercial property.

e. No, because Marcus's participation in the conspiracy was factually driven by the extortion he experienced from the corrupt police commander rather than criminal intent.

Answer: (a)

Explanation: Under the Pinkerton doctrine, a conspirator is liable for the substantive offenses committed by co-conspirators if those crimes are in furtherance of the conspiracy and reasonably foreseeable. A sudden encounter with a watchman and subsequent violence is a highly foreseeable risk of commercial arson. (d) is wrong because Pinkerton liability is derivative; it does not require Marcus to personally possess the specific intent to kill. (b) is wrong because Pinkerton does not require advance knowledge of the specific means or weapon; foreseeability of the offense is sufficient. (e) is wrong because the premise states his duress defense failed, meaning his motive does not legally negate his culpability. (c) is wrong because Pinkerton explicitly expands liability to conspirators who are not physically present, unlike traditional accomplice liability.

Q44. Assume the government seeks to indict the entire Bayside Syndicate—including Vance and all three smuggling crews—as a single association-in-fact enterprise under RICO. Based on the "hub-and-spoke" structure where the crews never interact, how will a court likely evaluate the existence of this overarching enterprise?

a. The syndicate fails to qualify as a single association-in-fact enterprise, because the complete lack of interaction among the independent crews means there is no "rim" connecting the spokes.

b. The syndicate qualifies as a single enterprise, because Vance's status as a corrupt police commander automatically provides the legal rim required to connect the independent crews.

c. The syndicate qualifies as a single enterprise, because the federal RICO statute expressly abolished all structural requirements for proving an association-in-fact enterprise.

d. The syndicate fails to qualify as a single enterprise, because the crews engaged in smuggling rather than the specific pattern of extortion and bribery directed by Vance.

e. The syndicate fails to qualify as a single enterprise, because RICO strictly requires the enterprise to be a legitimate, legally incorporated commercial business entity.

Answer: (a)

Explanation: Under Boyle and established RICO jurisprudence, an association-in-fact enterprise requires structure, relationships among those associated, and longevity. A hub-and-spoke configuration where the spokes (the crews) never interact lacks the relational "rim" required to form a single cohesive enterprise, even if Vance interacts with all of them individually. (b) is wrong because a central hub alone does not create a rim; the spokes must have relationships with each other. (e) is wrong because RICO explicitly applies to illegitimate, informal criminal associations. (c) is wrong because Boyle confirmed that an association-in-fact enterprise must have at least some minimal structure. (d) is wrong because the predicate acts do not need to be identical across the enterprise, but rather must relate to the enterprise's purpose.

Q45. Assume that Dave is prosecuted for the arson under a theory of accomplice liability. Applying the traditional common-law and Model Penal Code standard for the mens rea of complicity, is Dave liable as an accomplice to the arson?

a. Yes, because Dave's status as a security guard imposed a formal legal duty to prevent the arson, making his knowing facilitation sufficiently culpable for liability.

b. No, because Dave's act of unlocking the door was a non-criminal omission rather than the required affirmative act of physical assistance necessary for complicity.

c. Yes, because Dave charged a flat fee for his services, which legally transforms his mere knowledge of the crime into the requisite specific intent to facilitate it.

d. No, because Dave merely possessed knowledge of Marcus's criminal intent but lacked the conscious object or purpose to see the warehouse successfully destroyed.

e. Yes, because Dave provided concrete physical assistance that was an essential factual cause of the arson being successfully completed by Marcus and Leo.

Answer: (d)

Explanation: The traditional common-law and MPC standard for accomplice liability requires that the accomplice act with the "purpose" of promoting or facilitating the offense. Mere knowledge that a crime will occur is insufficient. Dave explicitly stated he had "no stake in your beef" and merely took a flat fee, demonstrating knowledge but not purpose. (b) is wrong because unlocking a door is an affirmative act of assistance, not an omission. (e) is wrong because actus reus (assistance) alone is insufficient without the required mens rea (purpose). (c) is wrong because charging a standard flat fee does not establish a financial stake in the venture's success, which is often required to elevate knowledge to purpose. (a) is wrong because while Dave may have breached an employment duty, accomplice liability for the substantive crime still requires the purpose to facilitate it.

Q46. Assume the prosecution instead charges Dave with conspiracy to commit arson, relying on the *Lauria* framework to infer his intent from his knowledge of Marcus's plan. Is Dave guilty of conspiracy under this standard?

a. Yes, because Dave's decision to accept the money while fully knowing Marcus's intent creates an irrebuttable legal presumption of a conspiratorial agreement.

b. No, because the strict bilateral agreement requirement prevents a conspiracy conviction unless both parties explicitly articulate their shared intent to commit the specific target crime.

c. Yes, because providing unauthorized access to a secured building has no legitimate lawful purpose, which inherently and conclusively demonstrates conspiratorial intent.

d. Yes, because Dave's corrupt agreement to unlock the door constituted an overt act that satisfied the conduct element of traditional conspiracy law.

e. No, because Dave charged a standard flat fee rather than a percentage, indicating he lacked the special financial stake in the venture required to infer intent from mere knowledge.

Answer: (e)

Explanation: Under *People v. Lauria*, intent to agree to a conspiracy cannot be inferred from mere knowledge unless the provider has a "stake in the venture" (e.g., inflating prices, taking a cut of profits), there is no legitimate use for the goods/services, or the volume is disproportionate. Because Dave charged a flat "blind eye" fee, he lacked a financial stake in the success of the arson. (b) is wrong because agreements can be tacit and inferred; explicit articulation is not required. (a) is wrong because knowledge alone does not create an irrebuttable presumption of intent to agree. (c) is wrong because while unlocking the

door is illegitimate, *Lauria* requires more than a single illicit transaction to automatically infer the specific intent to join a conspiracy. (d) is wrong because an overt act satisfies the actus reus of conspiracy but does not cure a defective mens rea (intent to agree).

Q47. Assume the federal government charges Dave with RICO conspiracy under § 1962(d) based on his acceptance of the "blind eye" fee. How will the court evaluate Dave's liability for RICO conspiracy?

a. The charge likely fails, because the *Salinas* doctrine requires the prosecution to prove that Dave personally committed or explicitly agreed to personally commit two predicate offenses.

b. The charge likely succeeds, because Dave provided material logistical support to a known enforcer, which inherently satisfies the requirement for a hub-and-spoke conspiracy structure.

c. The charge likely succeeds, because Dave's acceptance of the commercial bribe constitutes a predicate act that automatically establishes his membership in the overarching enterprise.

d. The charge likely succeeds, because the federal RICO statute explicitly eliminates the traditional conspiracy requirement that the defendant must intend to join any agreement.

e. The charge likely fails, because Dave's isolated transaction does not demonstrate that he knew about or agreed to facilitate the broader racketeering pattern of the Bayside Syndicate.

Answer: (e)

Explanation: Under *Salinas*, a RICO conspiracy conviction requires that the defendant intend to further an endeavor which, if completed, would satisfy all elements of a substantive RICO violation. This means the defendant must know about and agree to facilitate the enterprise's broader pattern of racketeering. Dave's isolated transaction with Marcus shows no awareness of or agreement to Vance's broader syndicate operations. (a) is wrong because *Salinas* specifically held that a defendant does *not* need to personally commit or agree to personally commit two predicate acts. (c) is wrong because a single predicate act does not prove agreement to the broader enterprise pattern. (b) is wrong because material support to one person does not establish a hub-and-spoke conspiracy without shared enterprise intent. (d) is wrong because RICO conspiracy still requires an agreement (the intent to join), even if the object of that agreement is broader.

Q48. Assume Leo is prosecuted for the homicide of the watchman. Which of the following provides the most straightforward doctrinal path for the prosecution to secure a first-degree murder conviction against Leo?

a. The prosecution can rely on the misdemeanor-manslaughter rule, because trespassing into the warehouse constitutes a strict liability predicate offense.

b. The prosecution must prove extreme emotional disturbance, because Leo shot the watchman immediately and reactively upon being surprised in the dark warehouse.

c. The prosecution can rely on the felony-murder rule, because the killing occurred during the commission of an arson, effectively substituting for the requirement of premeditation.

d. The prosecution must prove adequate provocation, because the sudden appearance of the watchman created a legally recognized state of sudden heat of passion.

e. The prosecution must establish implied malice, because Leo's act of carrying a concealed weapon demonstrated a generalized reckless indifference to human life.

Answer: (c)

Explanation: First-degree felony murder elevates a homicide to first-degree murder if it occurs during the commission of an enumerated inherently dangerous felony, such as arson. This relieves the prosecution of the burden of proving specific intent to kill or premeditation and deliberation. (b) is wrong because extreme emotional disturbance (EED) is a partial defense that reduces murder to manslaughter, not a path to a first-degree conviction. (e) is wrong because implied malice (depraved heart) typically supports a second-degree murder conviction, and felony murder is a more direct path to first-degree. (a) is wrong because misdemeanor-manslaughter leads to an involuntary manslaughter conviction, not first-degree murder. (d) is wrong because adequate provocation mitigates murder to voluntary manslaughter, and a lawful watchman doing his job is not legally adequate provocation.

Q49. Assume Leo asserts an insanity defense, and the jurisdiction applies the traditional *M'Naghten* test. How does Leo's hallucination that the watchman was a "demon" apply to this standard?

a. It likely fails the wrongness prong, because the *M'Naghten* standard is an objective test that legally ignores the defendant's idiosyncratic subjective delusions about the victim's identity.

b. It likely satisfies the wrongness prong, because a defendant who genuinely believes he is killing a supernatural demon lacks the cognitive capacity to comprehend that his act is morally or legally wrong.

c. It likely fails the cognitive prong, because Leo's physical ability to aim and fire the concealed handgun demonstrates that he clearly understood the physical nature and quality of his actions.

d. It likely satisfies the volitional prong, because the intense fear generated by the hallucination created an irresistible impulse that entirely destroyed his freedom of will.

e. It likely satisfies the substantial capacity prong, because Leo's bizarre statements in the holding cell show he was temporarily unable to conform his conduct to the requirements of the law.

Answer: (b)

Explanation: The *M'Naghten* test requires that due to a mental disease, the defendant did not know the nature and quality of the act, or did not know it was wrong. If Leo genuinely believed he was shooting a demon rather than a human being, he lacked the cognitive capacity to understand that his action was legally and morally wrong. (c) is wrong because even if he understood the physical mechanics of shooting (nature and quality), failing the second prong (wrongness) is sufficient for the defense. (d) is wrong because the traditional *M'Naghten* test is purely cognitive and does not contain a volitional "irresistible impulse" prong. (a) is wrong because the test specifically focuses on the defendant's subjective cognitive state resulting from the mental disease. (e) is wrong because "substantial capacity to conform" is the Model Penal Code test, not the *M'Naghten* standard.

Q50. Assume Leo is tried in an insanity jurisdiction that excludes conditions manifested solely by antisocial personality disorder (APD). The jury concludes as a factual matter that while Leo has schizophrenia, his APD and voluntary meth use were the actual causes of his violent outburst. How will this finding affect his insanity defense?

a. The defense will fail, because statutes categorically bar any defendant with an antisocial personality disorder diagnosis from raising affirmative mental health defenses under any circumstances.

b. The defense will fail, because the required causal link to a qualifying mental disease is missing if the jury determines the incapacity was actually caused by excluded non-qualifying conditions.

c. The defense will fail, because the Model Penal Code strictly requires the qualifying mental disease to be the absolute sole cause of the defendant's criminal behavior.

d. The defense will succeed, because the mere clinical presence of a qualifying mental disease like schizophrenia automatically satisfies the threshold legal requirement regardless of causation.

e. The defense will succeed, because voluntary intoxication is widely recognized as a valid independent basis for establishing the affirmative defense of legal insanity.

Answer: (b)

Explanation: Under rules derived from cases like *Meiser*, when a defendant has both a qualifying disease (schizophrenia) and non-qualifying conditions (APD, voluntary intoxication), the defense succeeds only if the qualifying disease caused the incapacity. If the jury finds the APD and meth caused the violence, the causal link to the qualifying disease fails. (d) is wrong because mere co-occurrence is insufficient; the qualifying disease must be the legal cause of the incapacity. (a) is wrong because the exclusion means APD cannot be the *sole* basis for the defense; it does not "taint" or bar the defense if a qualifying disease is

actually the cause. (e) is wrong because voluntary intoxication is routinely excluded as a basis for insanity. (c) is wrong because the law requires the qualifying disease to be *a* cause, not necessarily the *sole* cause, but here the jury found it was not the cause at all.

Q51. Assume Silas is prosecuted for attempted murder based on his actions in the parked car before Trey arrived. How would Silas's conduct likely be evaluated under the differing doctrinal tests for attempt liability?

a. His conduct fails both tests equally, because mere preparation can never constitute an attempted crime until the defendant has crossed the physical threshold of the immediate kill zone.

b. His conduct satisfies both tests equally, because unholstering a legally permitted firearm inside a registered vehicle always constitutes a completed overt act sufficient for any attempt standard.

c. His conduct likely satisfies the common-law proximity test because he physically possessed a lethal weapon, but fails the MPC's substantial step test because Trey was ultimately determined to be unarmed.

d. His conduct likely satisfies the MPC's substantial step test because lying in wait strongly corroborates criminal purpose, but it may fail the strict common-law proximity test because Trey had not yet arrived.

e. His conduct fails the MPC's substantial step test because he was sitting passively in a parked car, but satisfies the common-law proximity test because the target was a known syndicate hitman.

Answer: (d)

Explanation: The MPC's "substantial step" test specifically lists "lying in wait" as conduct that strongly corroborates criminal purpose, making it highly likely Silas's attempt charge succeeds under the MPC. Conversely, the common-law "proximity" test requires the defendant to be dangerously close to completing the crime; because Trey was still approaching and hadn't arrived, Silas might not have crossed that later threshold. (c) is wrong because the MPC does not require the victim to be armed, and possessing a weapon does not automatically satisfy the proximity test. (a) is wrong because the MPC was designed specifically to push attempt liability earlier into the preparatory phase. (b) is wrong because a minimal overt act is the standard for conspiracy, not the more demanding actus reus required for attempt. (e) is wrong because lying in wait satisfies the MPC, while the victim's identity does not alter the physical proximity requirement.

Q52. Assume Silas argues self-defense against the attempted murder charge. In evaluating his claim, how does the objective reasonableness standard apply to his belief that Trey posed an imminent lethal threat?

a. The jury must automatically reject the defense as a matter of law, because the post-arrest discovery that Trey was completely unarmed definitively proves the belief was objectively unreasonable.

b. The jury must consider whether a reasonable person possessing Silas's specific situational knowledge that Trey was a syndicate hitman would have believed deadly force was necessary.

c. The jury must actively ignore Trey's reputation as a hitman, because the objective standard legally forbids incorporating the defendant's prior experiences or specific background knowledge.

d. The jury must determine only whether Silas subjectively and genuinely believed his life was in danger, regardless of what a hypothetical reasonable person would conclude.

e. The jury must apply a strict proportionality test that legally invalidates any self-defense claim when the victim's concealed hand is later shown to be entirely empty.

Answer: (b)

Explanation: The objective reasonableness standard for self-defense incorporates the defendant's situation and specific knowledge. A "reasonable person in the defendant's situation" includes Silas's prior knowledge that Trey was a known syndicate hitman, which informs whether his perception of the rapid approach and concealed hand was reasonable. (d) is wrong because the standard is not purely subjective; it requires both genuine belief and objective reasonableness. (c) is wrong because the objective standard explicitly incorporates relevant situational knowledge, as established in cases like *Goetz*. (a) and (e) are wrong because reasonableness is judged based on the facts as they reasonably appeared to the defendant at the time of the incident, not in hindsight based on the subsequent discovery that the victim was actually unarmed.

Q53. Assume the prosecution emphasizes that Silas had a clear, unobstructed path to put his car in drive and leave safely. How does this factual detail affect Silas's self-defense claim under different jurisdictional rules?

a. In both jurisdictions, his defense legally succeeds because the presence of a known hitman creates an automatic doctrinal exception to the traditional requirement of safe withdrawal.

b. In both jurisdictions, his defense automatically fails because the castle doctrine universally excludes parking lots and personal vehicles from the definition of a protected dwelling.

c. In a retreat jurisdiction, his defense fails because he was the initial aggressor; in a stand-your-ground jurisdiction, he must prove Trey's initial aggression beyond a reasonable doubt.

d. In a retreat jurisdiction, his defense succeeds because he was inside a vehicle; in a stand-your-ground jurisdiction, he legally forfeits immunity by choosing to lie in wait.

e. In a retreat jurisdiction, his defense likely fails because he had a safe escape route; in a stand-your-ground jurisdiction, he had no legal duty to retreat before resorting to deadly force.

Answer: (e)

Explanation: The primary distinction between the two regimes is the duty to retreat before using deadly force. In a retreat jurisdiction, the availability of a completely safe, known escape route (driving away) defeats the self-defense claim. In a stand-your-ground (SYG) jurisdiction, a person in a place they have a right to be has no duty to retreat and may meet force with force. (d) is wrong because while some states extend the castle doctrine to vehicles, it is not universal, and SYG does not automatically penalize lying in wait if the threat is imminent. (b) is wrong because many SYG states explicitly apply the doctrine to vehicles. (a) is wrong because the victim's identity does not erase a statutory duty to retreat if a safe path exists. (c) is wrong because lying in wait for an approaching threat does not make Silas the initial aggressor, and defendants do not bear the burden of proving aggression beyond a reasonable doubt.

Q54. Assume Silas is tried in a jurisdiction that follows the California rule on imperfect self-defense (as discussed in *Schuller*). If the jury concludes that Silas honestly but unreasonably believed Trey was about to kill him, what is the legal effect of this finding?

a. The genuine belief completely exonerates Silas, because the *Schuller* doctrine mandates a full acquittal whenever the defendant's threat perception is found to be honest.

b. The genuine belief negates the actus reus of the offense, legally transforming Silas's intentional act of lying in wait into an involuntary and non-criminal reflex.

c. The genuine belief shifts the legal burden of proof to the prosecution to demonstrate by clear and convincing evidence that Silas was the initial aggressor.

d. The genuine belief negates the malice element, reducing Silas's potential liability from attempted murder to attempted voluntary manslaughter.

e. The genuine belief provides no legal benefit, because imperfect self-defense applies exclusively to completed homicides rather than to inchoate attempt crimes.

Answer: (d)

Explanation: Under California's imperfect self-defense doctrine, an honest but unreasonable belief in the need for deadly force negates the malice element of murder. When applied to an attempt charge, this genuine belief reduces attempted murder to attempted voluntary manslaughter. (a) is wrong because imperfect self-defense is a partial defense that mitigates the grade of the offense; it does not provide a full acquittal. (e) is wrong because imperfect self-defense applies to attempted murder as well as completed murder, as both require malice. (c) is wrong because imperfect self-defense is a substantive mitigation doctrine, not a procedural burden-shifting mechanism like Florida's SYG immunity hearings. (b) is wrong because imperfect self-defense goes to the mental state (malice), not the voluntariness of the physical act (actus reus).

Q55. Assume the prosecution charges Silas with possession of the fentanyl found in the locked lockbox in his girlfriend's trunk. Silas argues he did not have constructive possession. Is his defense likely to succeed?

a. Yes, because although he knew the drugs were present, his lack of a key to the lockbox indicates he lacked the immediate power and intent to exercise control over the contraband.

b. Yes, because the vehicle was registered in his girlfriend's name, which automatically and conclusively defeats any legal claim that Silas exercised exclusive or joint control.

c. No, because under the strict federal standard, mere awareness of a controlled substance is the sole legal element required to establish custody and control for drug trafficking.

d. No, because the law presumes that any individual sitting in the driver's seat of a motor vehicle has constructive possession of all illegal narcotics located anywhere inside the vehicle.

e. No, because his explicit admission to police that he knew the box was in the trunk conclusively satisfies both the mens rea and actus reus requirements for constructive possession.

Answer: (a)

Explanation: Constructive possession requires both knowledge of the item's presence and the power and intent to exercise dominion and control over it. Because the lockbox was locked and Silas did not possess the key, he lacked the physical power to exercise control over the fentanyl, even though he knew it was there. (b) is wrong because vehicle registration is a factor but does not automatically defeat joint constructive possession if power and control exist. (e) is wrong because knowledge alone is insufficient; the actus reus of possession requires control, which is negated by the lack of a key. (d) is wrong because proximity and status as a driver do not create an absolute presumption of possession over locked containers. (c) is wrong because no jurisdiction, federal or state, equates mere awareness of contraband with the power to control it.

Scenario 5: The Empire Business

Facts

Assume the following facts can be proven beyond a reasonable doubt.

1. The investigation established that Empire Waste Management LLC is a legitimate, state-licensed waste disposal corporation. Jack is the sole owner and CEO; Laura is the salaried dispatcher; Kevin is a route supervisor.

2. In January, Jack verbally directed Kevin to use his waste collection routes to collect weekly extortion payments from ten local businesses and to deliver wholesale quantities of cocaine to local dealers.

3. Laura observed Kevin loading brick-shaped packages wrapped in duct tape into Empire Waste trucks. She knew these were drugs, but she continued to dispatch his routes solely because she wanted to keep her $80,000-per-year lawful salary.
4. Kevin stored a locked duffel bag containing two kilograms of cocaine in the shared Empire Waste employee breakroom.
5. Laura told Kevin: 'I know what's in that bag, get it out of the breakroom.' Kevin replied: 'I am the only one with the lock combination, just ignore it.' Laura never touched the bag.
6. On October 1, Kevin met with a rival syndicate member. Kevin handed over 100 grams of cocaine and received a loaded 9mm handgun in exchange.
7. Kevin possessed the 9mm handgun continuously thereafter.
8. In 2018, Kevin pled guilty to 'commercial fraud' in state court and received a sentence of two years' probation. The maximum statutory penalty for the offense was 18 months in prison, making it a qualifying felony under federal law.
9. During the 2018 proceedings, Kevin's defense attorney sent him an email stating: 'This conviction is classified as a misdemeanor. You are not a felon.' The investigation confirmed Kevin genuinely believed this email.
10. On November 1, Jack and Kevin signed a written agreement to launch a new syndicate called 'Tri-State Waste' the following year to control illegal gambling. No operations or overt acts for Tri-State have begun yet.
11. On November 15, Jack and Kevin agreed that Kevin would drive to Matthew's restaurant that night to break the windows to pressure Matthew into paying his missed protection money.
12. Kevin drove to the restaurant with the 9mm handgun in his pocket. He parked, put on a ski mask, grabbed a crowbar, and stepped out of his car, 50 feet from the restaurant doors.
13. Matthew, anticipating an attack, saw the masked Kevin approaching with the crowbar. Matthew stepped out the back door armed with a shotgun.
14. Upon seeing the shotgun, Kevin immediately dropped the crowbar, turned around, and sprinted away down the street.
15. Matthew yelled, 'I have to end this permanently so you cartel goons stop bleeding my business dry!' Matthew's hands were trembling and his face was flushed red. He shot the fleeing Kevin in the back from 40 feet away, killing him instantly.

Characters (Instructor Only)

- **Jack** (The Boss / Defendant. Head of the Empire Waste crime family.): enterprise liability, conspiracy, Pinkerton liability, and felony murder

- **Kevin** (The Capo / Defendant (Deceased in Stem 2). Managed street crews.): constructive possession, Section 924(c) Watson limitation, Rehaif mens rea, mistake of law, and attempt doctrines
- **Laura** (The Dispatcher / Defendant.): accomplice liability (purpose vs. knowledge) and limits of constructive possession
- **Matthew** (The Victim / Defendant (in Stem 2). Target of the attempted extortion who responds with lethal force.): self-defense limits and homicide grading

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Q56. Assume the government seeks to charge Jack under RICO using Empire Waste Management LLC as the enterprise. Can Empire Waste, a legitimate state-licensed corporation, serve as a RICO enterprise?

a. Yes, because any defendant who commits two or more predicate offenses within ten years automatically forms a RICO enterprise.

b. No, because Empire Waste is a legitimate, state-licensed corporation and therefore cannot constitute a criminal enterprise under RICO.

c. No, because the enterprise must be an association-in-fact with a formal hierarchy distinct from the underlying criminal acts.

d. Yes, because a legitimate corporation can serve as a RICO enterprise when its ordinary business structure is repurposed to conduct racketeering activity.

e. No, because an enterprise requires horizontal relationships among multiple distinct criminal schemes connected by a single rim.

Answer: (d)

Explanation: Under RICO doctrine, a legitimate corporation can itself constitute the enterprise when its ordinary business structure is repurposed to conduct racketeering activity. The lawfulness of the corporation's formal charter does not shield it from being classified as an enterprise (as seen in the *Insys Therapeutics* prosecution). (b) is wrong because lawful entities routinely serve as the enterprise if their structure is used for racketeering. (c) is wrong because the association-in-fact structural requirements apply to informal groups, not incorporated entities. (a) is wrong because it conflates the "pattern of racketeering" requirement (predicate offenses) with the distinct structural "enterprise" requirement. (e) is wrong because it applies the hub-and-spoke "rim" requirement from *Pinson*, which governs informal networks, not single unified corporate entities like Empire Waste.

Q57. Assume that, whether or not Jack is liable under RICO, the prosecution seeks to charge Laura as an accomplice to Kevin's drug distribution. Under the traditional common law rule for accomplice liability, is Laura guilty?

a. Guilty, because dispatching the Empire Waste trucks provided necessary physical assistance to the successful distribution of the narcotics.

b. Guilty, because by retaining her salary she financially benefited from the proceeds of the illicit drug distribution.

c. Not guilty, because her sole motive was to keep her lawful salary, meaning she lacked the purpose to facilitate the criminal venture.

d. Not guilty, because she did not personally handle or load the narcotics into the Empire Waste trucks on the route.

e. Guilty, because she had actual knowledge that she was facilitating drug distribution when she dispatched the trucks.

Answer: (c)

Explanation: Under the traditional *Peoni* rule, accomplice liability requires that the defendant act with the purpose of promoting or facilitating the crime. Merely providing routine services with knowledge of the crime, in order to keep a lawful pre-existing job, does not establish the required purpose or stake in the venture. (a) is wrong because providing physical assistance satisfies only the actus reus element; it ignores the required mens rea. (e) is wrong because under the common law majority rule, mere knowledge of the principal's criminal intent is insufficient without a shared purpose to see the venture succeed. (d) is wrong because physical handling of contraband is not required for accomplice liability if the defendant otherwise aids the crime with the requisite intent. (b) is wrong because receiving a standard lawful salary is not the equivalent of taking a financial stake in the success of the underlying criminal operation.

Q58. Assume the prosecution alternatively charges Laura with constructive possession of the two kilograms of cocaine stored in the breakroom. Is Laura guilty of constructive possession?

a. Not guilty, because her statement "get it out of the breakroom" demonstrated her lack of intent to exercise dominion and control over the drugs.

b. Guilty, because her failure to report the narcotics to law enforcement constituted tacit approval of their continued presence.

c. Not guilty, because constructive possession requires physical contact with the contraband at least once before discovery by law enforcement.

d. Guilty, because she had actual knowledge that a distributable quantity of narcotics was stored in a shared employee space.

e. Guilty, because as the dispatcher of the facility, she had joint access to the breakroom where the duffel bag was stored.

Answer: (a)

Explanation: Constructive possession requires proof that the defendant knew of the contraband's presence and had both the power and the intent to exercise dominion and control over it. Laura's awareness of the drugs and her demand to remove them proved knowledge, but defeated any inference that she intended to exercise dominion and control, particularly since Kevin retained exclusive access via the lock combination. (d) is wrong because awareness of contraband in a shared space is necessary but not sufficient to prove dominion and control. (e) is wrong because shared access to the room does not establish control over a locked bag within the exclusive control of another co-occupant. (c) is wrong because constructive possession by definition does not require physical contact with the item. (b) is wrong because failure to report does not equate to the affirmative intent to control the item required for possession.

Q59. Assume Kevin is charged under 18 U.S.C. § 924(c) for "using" a firearm during and in relation to a drug trafficking crime based on his October 1 exchange with the rival syndicate member. Is Kevin guilty of this offense?

a. Not guilty, because Justice Ginsburg's concurrence establishes that the definition of "use" only applies when a firearm is deployed as a weapon.

b. Guilty, because he actively employed the firearm as an item of barter and commerce during the transaction with the rival.

c. Guilty, because trading narcotics for a firearm inherently involves the firearm in a drug trafficking transaction under the statute.

d. Guilty, because possessing the firearm immediately after the transaction automatically constitutes carrying it during the underlying offense.

e. Not guilty, because under Watson, a person who receives a firearm in exchange for drugs does not "use" the firearm within the meaning of the statute.

Answer: (e)

Explanation: Under *Watson v. United States*, a defendant who trades drugs to acquire a gun does not "use" a firearm under § 924(c); only the party tendering the gun uses it as currency. The receiving party is merely receiving consideration. (c) is wrong because it ignores the Supreme Court's specific limitation on the definition of "use" for the receiving party in a drug-for-gun trade. (b) is wrong because this describes the rule from *Smith v. United States* (trading a gun for drugs), which is the exact opposite of what Kevin did. (a) is wrong because Justice Ginsburg's "use as weapon only" reading was a concurrence and is not binding law; the *Smith* rule permitting use as currency remains intact. (d) is wrong because the question specifically asks about the "use" prong, and mere possession after the transaction does not retroactively constitute "using" it as currency during the trade.

Q60. Assume Kevin is charged under the federal felon-in-possession statute (18 U.S.C. § 922(g)(1)). Applying the Supreme Court's interpretation of the knowledge requirement for this offense, does Kevin possess the required mental state?

a. No, because he did not realize that trading drugs for a firearm was a federal offense under the gun control statutes.

b. Yes, because a defendant's reliance on private counsel's advice can never defeat the required mens rea for a strict liability status element.

c. Yes, because his prior conviction carried a maximum penalty of 18 months in prison, which is objectively a felony regardless of his belief.

d. No, because the government cannot prove he knew he belonged to the prohibited class of persons convicted of a felony.

e. Yes, because he knew he possessed the firearm and ignorance of the law regarding his prior conviction status is no excuse.

Answer: (d)

Explanation: Under *Rehaif v. United States*, the federal felon-in-possession statute requires the government to prove the defendant knew both that he possessed a firearm and that he belonged to the relevant prohibited class (a person convicted of a crime punishable by more than one year in prison). Because Kevin genuinely believed his attorney's email that his conviction was a misdemeanor, he lacked knowledge of his prohibited status. (e) is wrong because *Rehaif* explicitly extends the knowledge requirement to the status element, overcoming the general "ignorance of law" maxim. (c) is wrong because objective reality does not satisfy a subjective knowledge requirement. (a) is wrong because the required knowledge pertains to his felony status, not the legality of his actions with the firearm. (b) is wrong because the status element is not strict liability under *Rehaif*; it requires subjective knowledge.

Q61. Assume instead that Kevin is charged under a state "felon in possession" statute that strictly rejects the federal *Rehaif* rule and requires no mens rea regarding felony status. Kevin attempts to assert a mistake of law defense based on his attorney's email. Will this defense succeed?

a. Yes, because his mistake negated the general intent required to possess the firearm and transport it in interstate commerce.

b. No, because advice from private counsel does not qualify as an "official statement" under the mistake of law exception to criminal liability.

c. Yes, because a genuine belief that one's conduct is lawful is always a complete defense to a malum prohibitum regulatory offense.

d. No, because the attorney's email misstated collateral law rather than the penal law itself, which precludes any reliance defense.

e. Yes, because his attorney's email constitutes an official statement of the law upon which he reasonably relied to assess his legal status.

Answer: (b)

Explanation: The official-statement exception to the mistake of law doctrine requires reasonable reliance on an official interpretation from a court, administrative order, or public officer charged with interpreting the law. Advice from private counsel, no matter how reasonable or genuinely believed, does not qualify as an official statement. (e) is wrong because a private attorney is not an official government source. (a) is wrong because a mistake of law does not negate the general intent to perform the physical act of possessing the gun. (d) is wrong because while the prior conviction is collateral law, that distinction generally helps defendants (under the collateral law exception); here he fails specifically because of the source of the advice. (c) is wrong because the traditional rule is that ignorance of the law is no excuse, regardless of whether the crime is malum in se or malum prohibitum.

Q62. Assume the government indicts Jack under § 1962(d) for RICO conspiracy based solely on the November 1 written agreement to launch "Tri-State Waste." Is Jack guilty of RICO conspiracy?

a. No, because an association-in-fact enterprise must have an established structure and longevity before a conspiracy can be formed to participate in it.

b. Yes, because an agreement to associate with and participate in a yet-to-be-formed racketeering enterprise constitutes a completed RICO conspiracy.

c. No, because no overt acts were committed in furtherance of the Tri-State Waste syndicate prior to the federal indictment being unsealed.

d. Yes, because he already operated Empire Waste and the new agreement immediately merged into the existing corporate enterprise structure.

e. Yes, because agreeing to any two predicate offenses automatically creates a RICO enterprise conspiracy without requiring proof of an overarching structure.

Answer: (b)

Explanation: Under *United States v. Rich*, an agreement to associate with and participate in a yet-to-be-formed racketeering enterprise can constitute a completed RICO conspiracy offense. The enterprise need not actually exist at the time of the agreement. (c) is wrong because, unlike general federal conspiracy, RICO conspiracy does not require an overt act; the agreement itself completes the crime. (d) is wrong because the facts explicitly state they are forming a "new syndicate," and guilt is based on agreeing to that new venture, not merging it. (a) is wrong because *Salinas* and *Rich* establish that conspiring to form a future enterprise is sufficient; it does not need to pre-exist the agreement. (e) is wrong because agreeing to commit crimes is not enough; the defendants must specifically agree to conduct or participate in an enterprise's affairs through a pattern of racketeering.

Q63. Assume the jurisdiction recognizes the *Pinkerton* doctrine. Is Jack liable for Kevin's substantive offense of carrying the 9mm firearm to the restaurant?

a. No, because Kevin did not actually brandish or fire the weapon during the attempted extortion before he dropped the crowbar and fled.

b. Yes, because Jack's physical absence from the scene automatically transfers liability to him as an accessory before the fact under the common law.

c. Yes, because under Pinkerton, a conspiracy leader is strictly liable for all crimes committed by subordinates at any time during the conspiracy.

d. No, because Jack did not explicitly agree that Kevin would bring a firearm to the restaurant when they planned the extortion.

e. Yes, because a co-conspirator is liable for reasonably foreseeable substantive offenses committed in furtherance of the conspiracy, and carrying a weapon to an extortion is foreseeable.

Answer: (e)

Explanation: Under the *Pinkerton* doctrine, a conspirator is liable for the substantive offenses committed by a co-conspirator if those crimes are committed in furtherance of the conspiracy and are reasonably foreseeable as a necessary or natural consequence of the unlawful agreement. It is reasonably foreseeable that a subordinate would carry a weapon while executing a violent extortion scheme. (d) is wrong because *Pinkerton* does not require an explicit agreement to commit the specific substantive offense, only foreseeability. (c) is wrong because *Pinkerton* liability is not strict; it is limited by the foreseeability and "in furtherance" requirements. (a) is wrong because mere possession or carrying of the weapon can be a substantive offense, regardless of whether it is fired. (b) is wrong because *Pinkerton* liability is based on the conspiracy agreement, not common-law accessory categories.

Q64. Assume the jurisdiction applies the majority "agency rule" for felony murder. Is Jack liable for felony murder for the death of his co-felon Kevin?

a. No, because under the agency rule, the fatal act must be committed by a co-felon, not by the victim or a third party resisting the felony.

b. No, because the felony had already completely terminated the moment Kevin dropped the crowbar and attempted to flee from the scene.

c. Yes, because a boss in a criminal syndicate assumes strict liability for the deaths of any subordinates carrying out his explicit orders.

d. Yes, because Jack set in motion the chain of events that proximately caused Kevin's death during the commission of the underlying extortion felony.

e. Yes, because the extortion was an inherently dangerous felony that created a reasonably foreseeable risk of a lethal response from the target.

Answer: (a)

Explanation: The majority "agency rule" for felony murder limits liability to deaths caused by the felons themselves or their agents. If a victim or police officer fires the fatal shot, the felons are not liable for felony murder because the shooter is not their agent. (d) is wrong because it describes the minority "proximate cause" theory of felony murder, not the agency rule requested by the stem. (e) is wrong because foreseeability alone does not satisfy the agency rule's strict requirement regarding who fired the fatal shot. (b) is wrong because fleeing the scene is generally considered part of the *res gestae* of the felony, but Jack avoids liability due to the identity of the shooter, not the timing. (c) is wrong because felony murder requires a specific causal and agency connection, not general strict liability for syndicate bosses.

Q65. Assume Matthew is charged with homicide for shooting Kevin. Can Matthew successfully assert self-defense?

a. Yes, because as a business owner, Matthew had no duty to retreat from his own property before using deadly force to defend it.

b. No, because Kevin was sprinting away, meaning the threat of harm was no longer imminent when Matthew fired the fatal shot.

c. No, because Matthew was the initial aggressor by stepping out of the back door with a shotgun instead of calling law enforcement.

d. Yes, because Kevin's initial approach with a crowbar constituted an unprovoked threat of death or serious bodily harm to Matthew.

e. Yes, because Matthew honestly believed the cartel would continually bleed his business dry, creating an ongoing and inescapable threat to his life.

Answer: (b)

Explanation: Self-defense requires that the threat of death or serious bodily harm be imminent. When an attacker abandons their weapon and flees, the imminent threat dissipates, and the use of deadly force is no longer legally justified. (d) is wrong because while the initial threat may have been imminent, self-defense is evaluated at the exact moment the force is used, at which point Kevin was fleeing. (a) is wrong because "stand your ground" or castle doctrine rules only remove the duty to retreat; they do not eliminate the core requirement that the threat be imminent. (c) is wrong because Kevin was the initial aggressor by approaching masked with a crowbar; Matthew's defensive display of a weapon did not make him the initial aggressor. (e) is wrong because future, non-imminent threats cannot justify the present use of deadly force under traditional self-defense doctrine.

Q66. Assume Matthew cannot claim self-defense and is convicted of homicide. Could Matthew successfully mitigate the charge to voluntary manslaughter under the common law "heat of passion" doctrine?

a. Yes, because the terror of an armed extortion attempt is adequate provocation to cause a reasonable person to lose self-control and overreact.

b. No, because shooting a fleeing person in the back demonstrates cold calculation, which strictly precludes any heat of passion mitigation defense.

c. Yes, because any killing committed with an honest belief in the need for self-defense automatically mitigates murder to manslaughter in all jurisdictions.

d. No, because mere words, such as Matthew's statement about ending the cartel threat, are insufficient provocation as a matter of law.

e. Yes, because Matthew's trembling hands and flushed face provide objective proof that he lacked the necessary mens rea for a murder conviction.

Answer: (a)

Explanation: Voluntary manslaughter under the heat of passion doctrine requires actual provocation that would cause a reasonable person to lose self-control and act out of intense emotion (anger, terror, or fear) before a cooling-off period has occurred. Being targeted for violent extortion and confronted by a masked, armed attacker qualifies as legally adequate provocation. (d) is wrong because the provocation was Kevin's armed approach, not Matthew's own words. (e) is wrong because heat of passion is an affirmative mitigation that reduces the grade of homicide, not a negation of the intent to kill (mens rea for murder). (b) is wrong because a person in the grip of intense terror or rage might still shoot a fleeing attacker; the doctrine specifically accommodates lethal overreactions triggered by adequate provocation. (c) is wrong because this describes "imperfect self-defense," which is a distinct doctrine from the provocation/heat of passion defense and is not universally adopted.

Q67. Assume the prosecution charges Kevin with Possession with Intent to Distribute (PWID) and introduces no evidence other than his possession of the two-kilogram quantity of cocaine in the breakroom. Can the jury convict Kevin of PWID based solely on the quantity recovered?

a. No, because possession of narcotics is always a strict liability offense that does not permit logical inferences about future distribution intent.

b. Yes, because federal law provides that possessing any quantity over 500 grams creates a mandatory legal presumption of intent to distribute.

c. No, because while large quantities trigger weight-based mandatory minimum sentences, proving the specific intent to distribute typically requires additional circumstantial evidence.

d. Yes, because constructive possession of any bulk amount of a Schedule I or II narcotic automatically satisfies the distribution element of the statute.

e. No, because intent to distribute can only be proven through direct evidence of a completed sale or transfer to another person.

Answer: (c)

Explanation: Under the general rule for drug offenses, while statutory mandatory minimums are triggered by drug weight alone, elevating a simple possession charge to "possession with intent to distribute" typically requires additional circumstantial evidence of distribution intent (such as packaging materials, scales, or cash ledgers). Quantity alone is generally insufficient to independently prove the specific intent mens rea. (b) is wrong because federal weight thresholds trigger mandatory minimum sentences, not mandatory presumptions of intent. (a) is wrong because possession offenses are not strict liability; they require knowledge. (d) is wrong because constructive possession only establishes dominion and control over the substance, not the specific intent to distribute it. (e) is wrong because circumstantial evidence is routinely used to prove intent to distribute; a completed sale is not required.

Scenario 6: Procedural Block

Facts

Assume the following facts can be proven beyond a reasonable doubt.

1. Kevin operated 'WasteCorp,' a commercial waste management company. He systematically used its corporate structure, payroll, and fleet of trucks to run a regional cocaine distribution network.
2. Kevin and Luis, a WasteCorp driver, explicitly agreed that Luis would transport packaged cocaine hidden inside his assigned waste drums during his routes.
3. Steve, acting as outside corporate counsel, drafted the weekly trucking routes. Kevin told Steve, 'Ensure these routes avoid all state weigh stations so my packages aren't searched.' Steve drafted the routes exactly as requested, doing so strictly to maintain his lucrative billable hours, having no personal stake in the narcotics profits.
4. Law enforcement raided WasteCorp headquarters. Agents found 5 kilograms of packaged cocaine inside a locked filing cabinet in Steve's private office. Kevin and Steve were the only two people who possessed keys to this cabinet. Neither man was present in the room during the raid.
5. Three weeks later, while Luis was driving a WasteCorp truck loaded with cocaine, armed rival gang members ambushed him and opened fire on his truck. To save his own life and protect the cargo, Luis returned fire. He missed the rivals, but his stray bullet struck and killed a passing pedestrian bystander.
6. Kevin, suspecting lower-level employee Marco was cooperating with law enforcement, paid a hitman $10,000, provided Marco's home address, and ordered the hitman to kill him. The hitman drove to Marco's neighborhood but was arrested for an outstanding traffic warrant three blocks from Marco's house before taking any further action.

Characters (Instructor Only)

- **Kevin** (Defendant / Enterprise Leader): RICO-enterprise, conspiracy, constructive possession, Pinkerton liability, attempt
- **Luis** (Defendant / Driver): Conspiracy, self-defense, felony-murder, depraved-heart murder
- **Steve** (Defendant / Counsel): Accomplice liability (purpose vs knowledge), conspiracy, constructive possession
- **Marco** (Witness / Target): Attempt (object of the crime)

Q68. Assume the prosecution charges Kevin under the Racketeer Influenced and Corrupt Organizations Act (RICO). Has Kevin legally established an "enterprise" by utilizing WasteCorp?

a. Kevin has not established a RICO enterprise, because as the sole operator of WasteCorp, he lacks the distinctness required between the defendant and the enterprise.

b. Kevin has established a RICO enterprise, because using a legally incorporated entity like WasteCorp for an illicit scheme perfectly satisfies the statutory definition.

c. Kevin has established a RICO enterprise, but only because the corporate fleet crossed regional lines to distribute the packaged cocaine.

d. Kevin has established a RICO enterprise, because any commercial waste management firm automatically meets the threshold if it generates revenue from illicit acts.

e. Kevin has not established a RICO enterprise, because RICO requires the organization to be an informal association-in-fact rather than a legitimate corporation.

Answer: (b)

Explanation: Using a legally incorporated entity like WasteCorp for a criminal scheme squarely satisfies RICO's definition of an "enterprise." The Supreme Court in *Cedric Kushner* held that a corporate owner or employee (Kevin) is legally distinct from the corporation itself (WasteCorp), fulfilling the critical distinctness requirement. (e) is wrong because RICO expressly includes corporations and legitimate legal entities, not just informal associations-in-fact. (c) is wrong because his use of the corporate payroll and structure is also sufficient; the fleet crossing regional lines is not the sole qualifying factor. (a) is wrong because the *Cedric Kushner* doctrine explicitly recognizes the distinctness between a sole owner and their incorporated business. (d) is wrong because strict liability does not apply; RICO requires the defendant to actively conduct the enterprise's affairs through a pattern of racketeering.

Q69. Assume the prosecution attempts to charge Steve as an accomplice to Kevin's narcotics distribution network for drafting the evasive trucking routes. Under the standard legal framework for accomplice liability, what is the most likely result?

a. Steve is not an accomplice, because providing standard professional services to maintain billable hours does not establish a true purpose to facilitate the crime.

b. Steve is an accomplice, because his financial compensation from WasteCorp gives him an automatic legal stake in the underlying narcotics venture.

c. Steve is an accomplice, because he had knowledge of the criminal purpose and provided services that facilitated the ongoing distribution network.

d. Steve is not an accomplice, because an outside corporate counsel cannot be held liable for the physical distribution of narcotics by employees.

e. Steve is an accomplice, because drafting evasive routes is inherently dangerous and therefore strict liability applies to his legal counseling.

Answer: (a)

Explanation: Accomplice liability generally requires the defendant to act with the specific purpose of promoting or facilitating the underlying crime. Under the *Lauria* doctrine, providing standard professional services with mere knowledge of their illicit use does not establish purpose unless the provider has a stake in the venture, inflates their rates, or the crime is uniquely heinous. Steve acted strictly to maintain regular billable hours and had no personal stake in the narcotics profits. (c) is wrong because mere knowledge without a true purpose to facilitate the crime is typically insufficient. (e) is wrong because strict liability does not apply to legal counseling or accomplice liability. (d) is wrong because an outsider absolutely could be liable if they possessed the genuine purpose to facilitate the distribution. (b) is wrong because regular, standard compensation for professional services does not constitute a "stake in the venture" under *Lauria*.

Q70. Based on Steve's agreement to draft the evasive routes exactly as Kevin requested, can Steve be convicted of entering into a criminal conspiracy to distribute narcotics?

a. Steve is not guilty of conspiracy, because he did not directly communicate with Luis or the other drivers who actually transported the illegal packages.

b. Steve is guilty of conspiracy, because fulfilling a client's request with knowledge of its illicit purpose is legally indistinguishable from a formal agreement.

c. Steve is guilty of conspiracy, because corporate attorneys are held to a higher standard of care and implicitly agree to their clients' stated schemes.

d. Steve is not guilty of conspiracy, because without a shared intent to further the distribution scheme or a stake in the profits, no agreement exists.

e. Steve is guilty of conspiracy, because drafting the evasive routes constitutes a substantial step towards the completion of the substantive drug distribution offense.

Answer: (d)

Explanation: Conspiracy requires a genuine agreement to achieve a criminal objective. Like accomplice liability, an agreement cannot generally be inferred from a service provider's mere knowledge of a client's illegal intent. Under *Lauria*, there must be an intent to further the scheme, evidenced by a stake in the venture, disproportionate volume, or a highly serious crime. Because Steve drafted the routes purely for billable hours without a stake in the narcotics profits, an agreement to join the drug conspiracy cannot be inferred. (b) is wrong because fulfilling a request with mere knowledge is legally distinguishable from entering a conspiratorial agreement. (e) is wrong because the "substantial step" doctrine applies to criminal attempt, not to forming a conspiracy agreement. (a) is wrong because a conspirator need not communicate directly with every member of a conspiracy to be part of the agreement. (c) is wrong because corporate attorneys do not implicitly adopt their clients' criminal agreements merely through professional representation.

Q71. Assume law enforcement found the 5 kilograms of packaged cocaine in the locked filing cabinet in Steve's private office. Both Kevin and Steve possess keys, but neither was present during the raid. Who holds legal possession of the narcotics?

a. Neither man has constructive possession, because the law requires at least one defendant to be physically present in the room during the law enforcement raid.

b. Only Kevin has constructive possession, because he is the primary operator of the distribution network and therefore the true owner of the packaged cocaine.

c. Both men have constructive possession, because they both possess keys to the cabinet, demonstrating joint power and intent to exercise control over the contraband.

d. Both men lack constructive possession, because discovering the drugs in a shared, locked container creates reasonable doubt as to which specific individual owned them.

e. Only Steve has constructive possession, because the filing cabinet was located inside his private office, which negates Kevin's legal dominion over the space.

Answer: (c)

Explanation: Constructive possession requires the power and intent to exercise dominion and control over the contraband. Because both Kevin and Steve possessed the only keys to the locked cabinet where the drugs were actively stored, they exercised joint power and intent to control the space. Constructive possession can be held jointly by multiple defendants. (a) is wrong because physical presence is not required for constructive possession; exclusive access to a locked container suffices. (e) is wrong because Kevin's possession of a key gives him dominion over the cabinet despite it being housed inside Steve's private office. (b) is wrong because ownership of the broader network does not negate Steve's concurrent dominion over the specific locked container. (d) is wrong because joint constructive possession is a firmly established doctrine and shared access does not inherently destroy possession liability.

Q72. Assume the jurisdiction requires specific evidence of an intent to distribute narcotics beyond mere possession. How does the discovery of 5 kilograms of packaged cocaine affect the legal analysis for Kevin and Steve?

a. The quantity supports an intent to distribute, because any amount of a controlled substance found in a corporate office automatically triggers a distribution presumption.

b. The quantity cannot support an intent to distribute, because the cocaine was locked away, demonstrating an intent to store rather than actively sell the drugs.

c. The quantity supports an intent to distribute, because possessing five kilograms of packaged cocaine is far too large an amount for merely personal consumption.

d. The quantity cannot support an intent to distribute, because law enforcement must witness an actual sale or transfer before distribution intent can be legally inferred.

e. The quantity supports an intent to distribute, because constructive possession of any Schedule I narcotic inherently includes the intent to distribute it to others.

Answer: (c)

Explanation: Intent to distribute can be legally inferred from circumstantial evidence, primarily by possessing a quantity of narcotics that is unreasonably large for personal consumption. Five kilograms of packaged cocaine far exceeds any plausible amount for individual use, creating a highly permissible inference of an intent to distribute. (d) is wrong because circumstantial evidence, such as bulk quantity and packaging, is legally sufficient to prove intent without directly witnessing an actual sale. (a) is wrong because there is no automatic geographic or corporate presumption triggered simply by finding drugs in an office building. (b) is wrong because storing a massive, packaged quantity in a locked cabinet is entirely consistent with staging it for ongoing distribution. (e) is wrong because mere possession of small or trace amounts of a Schedule I narcotic does not inherently prove an intent to distribute.

Q73. Assume the prosecution pursues a RICO conspiracy charge under § 1962(d) against all three men for their roles in WasteCorp's operations. Under the Supreme Court's interpretation of RICO conspiracy, which legal standard applies?

a. Only Kevin can be guilty of a RICO conspiracy, because the statute requires the defendant to be the primary director of the enterprise's illicit affairs.

b. All three men are legally barred from a RICO conspiracy conviction unless the prosecution proves each man agreed to personally commit two predicate offenses.

c. All three men are exempt from a RICO conspiracy conviction because the enterprise was technically structured as a legitimately incorporated waste management business.

d. A defendant like Steve is automatically guilty of a RICO conspiracy if he provides any lawful professional service to a known criminal enterprise leader.

e. A defendant like Luis can be guilty of a RICO conspiracy as long as he agreed to facilitate the enterprise, even if he did not agree to personally commit two predicate acts.

Answer: (e)

Explanation: Under the Supreme Court's ruling in *Salinas v. United States*, a defendant can be convicted of a RICO conspiracy under § 1962(d) even if they do not agree to personally commit two predicate acts. They need only agree to facilitate the enterprise's broader pattern of racketeering activity. Therefore, a subordinate like Luis can be liable for the conspiracy without agreeing to commit two independent predicates. (b) is wrong because *Salinas* explicitly rejected the requirement that each conspirator must personally agree to commit two predicate offenses. (a) is wrong because lower-level members and facilitators can be guilty of a RICO conspiracy; liability is not limited to the primary director. (d) is wrong because providing lawful services does not automatically constitute an agreement to join the racketeering conspiracy. (c) is wrong because the use of a legitimate incorporated business does not exempt individuals from RICO liability.

Q74. Assume that Kevin and Luis are found to be members of the same drug distribution conspiracy. Can Kevin be held criminally liable for Luis's substantive offense of possessing the specific shipment of cocaine on the day of the ambush?

a. Kevin is not liable under Pinkerton, because he was not physically present in the truck when Luis transported the specific package of cocaine.

b. Kevin is liable under Pinkerton, because corporate leaders are held strictly liable for all regulatory and criminal offenses committed by their employees on duty.

c. Kevin is liable under Pinkerton, because Luis's possession of the shipment was a reasonably foreseeable consequence in furtherance of their ongoing drug distribution conspiracy.

d. Kevin is liable under Pinkerton, because any individual who operates a commercial vehicle network implicitly assumes liability for all cargo hidden inside the trucks.

e. Kevin is not liable under Pinkerton, because his agreement with Luis was limited to driving routes, not specifically to possessing the contraband.

Answer: (c)

Explanation: Under the *Pinkerton* doctrine, a conspirator is vicariously liable for the foreseeable substantive offenses committed by co-conspirators in furtherance of the conspiracy. Because transporting the cocaine shipment was the core, explicitly agreed-upon objective of the conspiracy, Luis's possession of the drugs was entirely foreseeable to Kevin and executed in furtherance of their scheme. (a) is wrong because physical presence is not required to establish vicarious liability under the *Pinkerton* doctrine. (b) is wrong because broad corporate strict liability is a regulatory concept and does not directly govern the criminal *Pinkerton* doctrine. (e) is wrong because an agreement to drive drug routes necessarily involves possessing the illicit contraband in furtherance of the conspiracy. (d) is wrong

because *Pinkerton* requires the offense to be in furtherance of a specific criminal conspiracy, not just an assumed general liability for commercial fleet cargo.

Q75. When evaluating Luis's decision to return fire against the armed rival gang members, how does his ongoing participation in the narcotics conspiracy affect his ability to assert a general claim of self-defense?

a. Luis may successfully assert self-defense, because he faced an imminent threat of unlawful deadly force from the gang members and was not the initial aggressor.

b. Luis may not assert self-defense, because individuals engaged in any form of illegal conduct automatically forfeit their legal right to defend themselves from unprovoked attacks.

c. Luis may successfully assert self-defense, because commercial drivers are granted specialized legal privileges to use deadly force to protect their assigned corporate freight.

d. Luis may not assert self-defense, because he failed to safely retreat from his commercial vehicle before deciding to return fire against the armed rivals.

e. Luis may successfully assert self-defense, because his primary motivation was to protect the valuable cocaine cargo from being stolen by the rival gang members.

Answer: (a)

Explanation: A valid claim of self-defense generally requires that the defendant was not the initial aggressor in the immediate encounter and faced an imminent threat of unlawful deadly force. Because the rival gang members unexpectedly ambushed Luis with firearms, he was not the initial aggressor and could lawfully use deadly force to protect his own life. (b) is wrong because participating in illegal conduct does not automatically strip a person of the right to self-defense against a completely unprovoked, deadly ambush. (e) is wrong because deadly force may never be legally utilized solely to protect property or cargo. (d) is wrong because there is generally no legal duty to safely retreat from a vehicle while actively taking incoming gunfire before returning fire. (c) is wrong because commercial drivers possess no specialized statutory or common law privileges to use deadly force for freight protection.

Q76. The prosecution charges Luis with felony-murder for the bystander's death, using his narcotics distribution as the predicate felony. Assuming the jurisdiction strictly limits the rule to "inherently dangerous" felonies, what is the most likely outcome?

a. The charge will fail universally, because the independent felony limitation strictly prohibits applying felony-murder to any crimes involving the transport of commercial freight.

b. The charge will fail in an "in the abstract" jurisdiction, because simply transporting drugs without violence is not inherently dangerous by its very nature.

c. The charge will fail in an "as committed" jurisdiction, because the underlying felony of narcotics distribution must be completely separate from the use of firearms.

d. The charge will succeed universally, because all statutory drug offenses automatically qualify as predicate crimes for the felony-murder rule regardless of the jurisdictional approach.

e. The charge will succeed universally, because the rival gang's ambush retroactively transforms any non-violent drug distribution into an inherently dangerous robbery predicate.

Answer: (b)

Explanation: In jurisdictions that limit felony-murder to "inherently dangerous" felonies, courts split on how danger is assessed. An "in the abstract" jurisdiction examines the statutory elements of the crime itself. Because the mere transportation of narcotics can be accomplished without creating a substantial risk of death, it would likely fail to qualify as inherently dangerous in the abstract. (c) is wrong because an "as committed" jurisdiction looks at the specific facts; operating a drug network that results in a violent shootout might actually qualify as dangerous under that standard. (d) is wrong because statutory drug offenses do not automatically qualify universally; it strictly depends on the jurisdiction's specific analytical approach. (a) is wrong because the independent felony limitation (merger doctrine) typically applies to inherently assaultive crimes, not commercial transport. (e) is wrong because third-party actions do not retroactively alter the inherent legal nature of the defendant's underlying felony.

Q77. Assume that Luis's felony-murder charge fails. The prosecution instead charges him with depraved-heart murder for the death of the passing pedestrian bystander. Does Luis's conduct meet the standard for this charge?

a. Luis is not guilty of depraved-heart murder, because his specific intent was to shoot the rival gang members rather than the innocent passing pedestrian.

b. Luis is guilty of depraved-heart murder, because any use of a firearm during a commercial trucking dispute is legally classified as an intentional premeditated killing.

c. Luis is guilty of depraved-heart murder, because his status as an illegal drug courier automatically elevates any accidental killing to the highest degree of murder.

d. Luis is not guilty of depraved-heart murder, because the ambush provoked an intense emotional response that automatically mitigates the homicide to voluntary manslaughter.

e. Luis is guilty of depraved-heart murder, because blindly returning fire on a street where passing pedestrians are present demonstrates an extreme indifference to human life.

Answer: (e)

Explanation: Depraved-heart murder requires a killing caused by extreme recklessness that manifests a conscious disregard for human life. Blindly returning gunfire on a public street where pedestrians are present creates a massive, unjustified risk to human life that perfectly satisfies the threshold for extreme indifference and implied malice. (a) is wrong because depraved-heart murder does not require a specific intent to kill the victim; extreme recklessness is the only required mental state. (c) is wrong because a defendant's status as a drug courier does not automatically elevate an accidental killing without directly analyzing their specific reckless conduct. (d) is wrong because being ambushed by rival criminals does not automatically constitute legally adequate provocation to mitigate the killing of an innocent bystander to voluntary manslaughter. (b) is wrong because premeditated killing requires genuine advance planning and intent to kill, not merely a reckless, spontaneous reaction.

Q78. Assuming Luis is convicted of a homicide offense for the bystander's death, can Kevin be held vicariously liable for the homicide under the *Pinkerton* doctrine?

a. Kevin is not liable, because the rival gang members initiated the gunfire, severing the causal chain between the conspiracy and the pedestrian's death.

b. Kevin is liable, because a shootout to protect the drug cargo is a reasonably foreseeable consequence of operating a high-value narcotics distribution network.

c. Kevin is not liable, because the agreement between Kevin and Luis was strictly limited to transporting the drugs without any explicit plans for violence.

d. Kevin is liable, because corporate owners bear strict vicarious liability for all torts and crimes committed by their drivers during designated operational hours.

e. Kevin is liable, because the Pinkerton doctrine eliminates the foreseeability requirement for any homicides that occur during the execution of a federal drug conspiracy.

Answer: (b)

Explanation: The *Pinkerton* doctrine holds conspirators liable for substantive offenses committed by co-conspirators if those offenses are foreseeable and in furtherance of the conspiracy. Given the well-known violent nature of the illicit drug trade, it is reasonably foreseeable that a driver transporting a massive shipment of cocaine might engage in a shootout to protect the cargo, making the resulting homicide a foreseeable consequence of the conspiracy. (c) is wrong because explicit plans for violence are not required; the violence need only be a reasonably foreseeable consequence of the underlying agreement. (d) is wrong because criminal vicarious liability stems from the conspiracy agreement itself, not standard civil corporate strict liability. (a) is wrong because the rival gang's initiation of the gunfire does not sever foreseeability in the highly volatile context of drug trafficking. (e) is wrong because *Pinkerton* strictly retains the foreseeability requirement for all substantive offenses.

Q79. Evaluate Kevin's liability for attempted murder regarding Marco under the Model Penal Code's "substantial step" framework.

a. Kevin has committed a substantial step, because the common law always equates the mere verbal solicitation of a crime with the physical attempt to commit it.

b. Kevin has committed a substantial step, because any monetary exchange related to an employee automatically fulfills the required elements of an attempted corporate assassination.

c. Kevin has not committed a substantial step, because the hitman was arrested three blocks away before arriving at Marco's house or aiming a specific weapon.

d. Kevin has committed a substantial step, because paying the hitman and providing the target's address strongly corroborates his firm criminal purpose to commit the murder.

e. Kevin has not committed a substantial step, because he merely engaged in preliminary preparations by hiring a third party instead of obtaining a weapon himself.

Answer: (d)

Explanation: Under the Model Penal Code's substantial step test, an attempt occurs when a defendant takes a substantial step that is strongly corroborative of their criminal purpose. Paying a hitman $10,000 and providing the victim's exact home address clearly moves far beyond mere preparation and concretely confirms Kevin's firm intent to see Marco murdered. (e) is wrong because hiring and paying a third-party assassin is universally recognized as satisfying the substantial step requirement under the MPC. (a) is wrong because the traditional common law often viewed mere solicitation as legally insufficient to constitute a full attempt. (c) is wrong because Kevin's liability is based on his own completed actions of hiring and financially compensating the hitman, which already firmly satisfy the MPC test regardless of the hitman's later arrest. (b) is wrong because there is no automatic legal assumption of attempt liability based solely on corporate employment status.

Q80. Compare the Model Penal Code's attempt framework with the traditional common law "dangerous proximity" test regarding the hitman's actions prior to his arrest.

a. Under the MPC, the actions constitute an attempt, but under the traditional dangerous proximity test, being arrested three blocks away likely falls short of liability.

b. Under the MPC, the actions constitute an attempt only if the hitman is an innocent agent, which strictly contradicts the underlying logic of dangerous proximity.

c. Under both frameworks, the actions fail to constitute an attempt because the hitman never exited his vehicle, rendering the planned assassination a mere abstract idea.

d. Under the traditional dangerous proximity test, the actions constitute an attempt, but under the strict MPC substantial step framework, the conduct likely falls short.

e. Under both frameworks, the actions constitute an attempt because the requisite intent to kill Marco was permanently locked in once the $10,000 payment was accepted.

Answer: (a)

Explanation: The Model Penal Code's substantial step test focuses on what the defendant has already accomplished, making the deployment of the hitman an easily recognizable attempt. Conversely, the traditional common law "dangerous proximity" test focuses strictly on what remains to be done, meaning an arrest three blocks away before any weapon is drawn or immediate threat is posed likely falls short of the required physical proximity to the intended target. (d) is wrong because it entirely flips the legal outcomes and standards of the two distinct attempt frameworks. (c) is wrong because the MPC does not require the hitman to physically exit the vehicle to satisfy the broader substantial step threshold. (e) is wrong because the dangerous proximity test explicitly requires more than just intent and financial payment; it demands imminent physical completion. (b) is wrong because the MPC applies regardless of whether the hitman is an innocent agent or a fully culpable actor.

Answer Key

Scenario 1: The Genesis

1. C
2. B
3. D
4. D
5. C
6. B
7. B
8. A
9. B
10. B

Scenario 2: The Blowback

11. A
12. D
13. E
14. B
15. D
16. A
17. A
18. E
19. B
20. C
21. C

Scenario 3: The Distribution Ring

22. A
23. E
24. E
25. D
26. B
27. B
28. B
29. A
30. A
31. D
32. C
33. A
34. C
35. E
36. C
37. B
38. D
39. C

Scenario 4: The Cornered Defenses

40. C
41. C
42. A
43. A
44. A
45. D
46. E
47. E
48. C
49. B
50. B
51. D
52. B
53. E
54. D
55. A

Scenario 5: The Empire Business

56. D
57. C
58. A
59. E
60. D
61. B
62. B
63. E
64. A
65. B
66. A
67. C

Scenario 6: Procedural Block

68. B
69. A
70. D
71. C
72. C
73. E
74. C
75. A
76. B
77. E
78. B
79. D
80. A